

The Arms Rules, 1962

Source: <https://indiankanoon.org/doc/150734898/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

19

]

Union of India - Act

The Arms Rules, 1962

UNION OF INDIA

India

The Arms Rules, 1962

Rule THE-ARMS-RULES-1962 of 1962

Published on 1 October 1962

Commenced on 1 October 1962

[This is the version of this document from 1 October 1962.]

[Note: The original publication document is not available and this content could not be verified.]

The Arms Rules, 1962

The Central Government hereby makes the following rules, namely :

100.

In exercise of the powers conferred by sections 5, 9, 10, 11, 12, 13, 16, 17, 18, 21, 41 and 44 of the Arms Act, 1959 (54 of 1959

), the Central Government hereby makes the following rules, namely:-

1.

Short title

(1)

These rules may be called The Arms Rules , 1962.

(2)

They shall come into force on the 1st October, 1962.

2.

Interpretation

.In these rules, unless the context otherwise requires,

(a)

Act means the Arms Act, 1959 (

54 of 1959

);

(b)

appellate authority means the appellate authority referred to in rule 5;

(c)

authority or officer means, except where otherwise specifically provided in these rules, the District Magistrate or such other Officer as may, from time to time, be notified in the Official Gazette by the Central Government;

(d)

company has the same meaning as that assigned to it in the Explanation under section 33;

(e)

dealer means a person who, by way of trade or business, manufactures, converts, repairs, proves, tests sells, exports, imports, or transfers or keep, for sale, repair or test arms or ammunition;

(f)

District Magistrate, includes

[***]

[Clause (i) omitted by G.S.R.947, dated 24.8.1973 (w.e.f. 8.9.1973.)

(ii)

in relation to any district or part thereof, an Additional District Magistrate or any other officer specially empowered in this behalf by the Government of the State concerned;

(iii)

in relation to a Union territory, any officer specially empowered by the Central Government in this behalf;

(iv)

in relation to the tribal areas of Assam, specified in Part B of the Table appended to paragraph 20 of the Sixth Schedule to the Constitution, a Political Officer; and

(v)

[in relation to the suburbs of Calcutta, as defined by notification issued from time to time by the Government of West Bengal in their Official Gazette under the Calcutta Suburban Police Act, 1866 (Bengal Act 2 of 1866), the Commissioner of Police, Calcutta, and a Deputy Commissioner of Police, Calcutta, nominated by the State Government in this behalf;]

[Substituted by G.S.R. 1470, dated 23.5.1963.]

(g)

Form means a form as set out in Schedule III;

(h)

Port includes an airport;

(i)

Schedule means a Schedule appended to these rules;

(j)

section means a section of the Act;

(k)

[Sub-divisional Magistrate includes Additional Sub-divisional Magistrate, Sub-divisional Officer and Additional Sub-divisional Officer.]

[Inserted by G.S.R.1567, dated 24.8.1968.]

3.

Classification of arms and ammunition

.For the purposes of the Act and these rules, arms or ammunition shall be of the categories specified in columns 2 and 3 respectively of Schedule I and references to any category of arms or ammunition in these rules shall be construed

accordingly.

[4. Licensing authority and forms of licences - (1) Licences under Chapter II of the Act may be granted or renewed for such purposes, by such authorities, in such Forms and to be valid for such period and in such areas as are specified in Schedule II, subject to such conditions as are specified in that Schedule and in the licence:

Provided that the licences granted or renewed by a licensing authority may be signed by such officer subordinate to that authority as may be specially empowered in this behalf by the State Government.

(2)

Every such licence granted by the District Magistrate under Section 13 shall be recorded in Form XXIII and a copy of it shall be forwarded to the concerned State Government by the licensing authority at the end of each quarter i.e. March, June, September and December each year.

(3)

The State Government shall, on the basis of the reports received under sub-rule (2), consolidate all the data concerning licences issued under Section 13 and send the same to the Government of India in Ministry of Home Affairs which shall create a suitable data base.]

5.

Appellate authorities

(1)

For the purposes of the Act and these rules the appellate authority to whom an appeal shall lie from an order of the [licensing or other authority] [[Added by G.S.R.1011(A), dated

7.8.1972

.]] specified in column (1) of the Table below shall be that specified in the corresponding entry in column (2) thereof:

Table

(2)

For the purpose of sub-section (6) of section 17 of the Act the licensing authority shall be deemed to be subordinate to the appellate authority.

Authority

Appellate Authority

(1)

(2)

(a) Tehsildar or 1st or 2nd Class Magistrate or Sub-divisionalMagistrate.

District Magistrate

(b) Additional District Magistrate, District Magistrate.

(i) Commissioner of the Divisionor in a Union Territory, theAdministrator thereof, or

(ii) In the States of Tamil Nadu,Andhra Pradesh and Kerala, the Board of Revenue, or

(iii) In the States of Jammu and Kashmi [- - -], West Bengal, Gujarat and in any other State not being a State mentioned in entry

(ii) above, in which there is no post of Commissioner of a Division, the State Government.

(c) Commissioner of Police.

State Government.

(d) Commissioner of the Division in a Union Territory.

The Administrator.

(e) Head of Indian Mission, or Political Officer.

Central Government.

(f) Other specially empowered officer.

Authority that empowered.

6.

Reasons to be communicated to the appellate authority in certain cases

.Where a licensing authority is of opinion that it will not be in the public interest to furnish reasons for the refusal, renewal, variation of conditions, revocation or suspension, of a licence, to the applicant, the recorded reasons therefor and the facts of the case shall be communicated by him to the appellate authority.

7.

Direction and control over licensing authorities

.All licensing authorities shall work under the direction and control of their respective appellate authorities.

8.

Restriction in granting licences for acquisition, possession or carrying of arms or ammunition of category I

(a)

No licence shall be granted for acquisition, possession or carrying of arms or ammunition of categories I(b), I(c) and I(d) unless they have been lawfully imported into India or are being imported into India with the sanction of the Central Government.

(b)

A licence for acquisition, possession or carrying of ammunition of categories I(b) and I(c) shall be granted only if the licensing authority is satisfied that the ammunition is to be used with rifles or muskets which are lawfully possessed for sporting purposes or with pistols or revolvers which have been lawfully imported into India; and the amount of ammunition which the licensee may possess during each period of 12 months immediately succeeding the date of grant of licence shall be entered in the licence.

9.

Copies of licences of categories I and II to be sent to certain authorities

.A copy of every licence granted for arms or ammunition of categories I(a), I(b), I(c), I(d) and II, shall forthwith be sent

(a)

to the District Magistrate of the place in which the arms or ammunition are to be kept, or

(b)

to the State Government, if such place is in the State of Jammu and Kashmir.

10.

Possession of arms or ammunition for certain purposes to include use thereof

.Possession of the following arms or ammunition for the purposes mentioned against each includes use thereof, for such purposes only provided that such use does not involve manufacture of any arms or ammunition (including explosives and fireworks):

(a)

arms, for theatrical performance, cinematograph production or signalling for starting races or athletic meets;

(b)

ingredients of ammunition, for bona fide industrial, agricultural or medicinal purposes.

11.

Restrictions may be imposed by Central Government

.[(1)] [[Rule 11 renumbered as sub-rule (1) thereof and sub-rule (2)

inserted by G.S.R.1259, dated 27.11.1980.]] Any licence having

effect outside the State in which it is granted, shall be subject to any restrictions which may be imposed by a general or special order of the Central Government.

(2)

[Save where he is specially authorised in this behalf by the District Magistrate concerned, the licensee shall not carry any arms covered by the licence within the campus or precincts of any educational institution.] [[Rule 11 renumbered as sub-rule (1) thereof and sub-rule (2) inserted by

G.S.R. 1259, dated 27.11.1980.]]

[- - -]

[Rule 12 omitted by G.S.R.1418, dated 15.9.1965.]

13.

Of retainers

(1)

When the owner of any arms or ammunition licensed in Form III applies for permitting his agent, relative or employee to possess or carry any of the arms or ammunition covered by the licence for sport, protection or display, on his behalf, whether in attendance on him or not, and in circumstances different from those mentioned in the proviso to section 3, such agent, relative or employee may, if the licensing authority considers it fit, be shown as a retainer by entering his name and other particulars in column 6 of the owners licence in Form III.

(2)

A licence in Form III granted to a company for the protection of its premises or property shall be in the name of a member, agent or other representative of the company, who shall be responsible for the custody of the weapon. The name of a servant or any other employee entrusted with the weapon for guarding the premises or property of the company shall be entered as a retainer in the appropriate column of the licence. The licensing authority shall issue to the licensee a permit in Form III-B for each of such retainers shown in the licence. The permit shall remain in the personal custody of the representative of the company and shall be made over to the retainers when they are entrusted with the weapon covered by the licence:

[Provided that the licensing

authority shall obtain a report from the Police about the antecedents of the retainer and take into consideration such report before admitting him as a retainer.]

[Inserted by G.S.R.703, dated 15.7.1981.]

(3)

A licence in Form III-A for possession and carrying of arms or ammunition may be granted to a person nominated to be his retainer by a person exempted from licensing requirements:

Provided that the retainer shall have no right, independent of the person so exempted, to use the arms or ammunition covered by the licence, and the licence shall cease to be in force on the day on which the person so exempted has ceased to be an exemptee, or the retainer has ceased to be in the service of the exemptee:

[Provided further that the licensing

authority shall obtain a report from the Police about the antecedents of the retainer and take into consideration such report before admitting him as a retainer.]

[Inserted by G.S.R.703, dated 15.7.1981.]

14.

Licences for protection of crops and cattle

(1)

Where a licence is granted in Form V, any member of the family of the licensee or a servant employed by the licensee to watch the crops or cattle and residing with him, may, in the discretion of the licensing authority, be allowed to carry any of the arms or ammunition covered by the licence to protect crops or cattle against wild animals in the area specified in the licence by entering his name and particulars in column 2 thereof.

(2)

Where, after the end of any harvest season, the State Government considers it expedient that for the protection of wildlife in any area, any arms or ammunition licensed in Form V should be deposited in a police station or with a licensed dealer, it may, by order, require any licensee to deposit such arms or ammunition for such period as the arms or ammunition are not required for the protection of crops or cattle and as may be specified therein, and thereupon the licensee shall be bound to comply with such order.

15.

Licence for target practice

.Where a licence in Form VI has been granted in the name of any military mess, club or association, it shall be lawful for any member of such mess, club or association to use the firearms or ammunition covered by such licence for the purposes of the mess, club or association in accordance with the conditions of the licence.

16.

Age-limit for training and target practice

.Any person below the age of sixteen years but not below the age of twelve years may be allowed to use a firearm for the purpose of training in the use of such firearm in the immediate presence, or under the direct supervision and guidance, of an adult instructor or the licensee:

Provided

that no person below the age of sixteen years shall be allowed to carry any firearm requiring a licence, in public place, except in the immediate presence and supervision of the person who is lawfully entitled to carry such firearm.

Explanation. For the purpose of this rule, an adult means a person who has completed the age of twenty-one years.

17.

Travellers (temporary) licence

(1)

Subject to the provisions of rule 8, a licence in Form VIII may be granted to any bona fide traveller, proceeding from the place of his arrival in India to his place of destination in India, for the possession and carrying of arms or ammunition for the duration of the journey, by the licensing authority at the place of arrival.

(2)

A copy of every such licence shall be forthwith sent to the District Magistrate having jurisdiction over the place of destination of the licensee; such authority shall satisfy himself, when necessary, that the licensee has complied with condition 7 entered on the Form of the licence.

18.

Application of section 4 of the Act

.In any area specified in the notification issued by the Central Government under section 4, licences for acquisition, possession or carrying in that area of arms of such class or description as may be specified in that notification may also be granted or renewed as provided in Schedule II, subject to such conditions as are specified in that Schedule and in the licence.

19.

Arms other than firearms

.Unless the Central or State Government by notification in the Official Gazette so directs, no licence shall be required for the manufacture, sale, possession for sale, or test, of arms of category V except in the areas notified under section 4.

20.

Manufacture, conversion, shortening, repair, test, sale, etc., of arms or ammunition

(1)

The licensing authority while granting a licence in Form IX shall show clearly in the licence form

(i)

the categories and description of the arms or ammunition covered by the licence;

(ii)

the transactions permitted in respect of the different categories of arms or ammunition, and omit any transactions or categories or arms or ammunition, not covered by the licence.

(2)

A copy of every licence granted in Form IX by an authority other than the District Magistrate of the place of business, factory or shop of the licensee shall forthwith be sent to that

District Magistrate.

21.

Conversion, repair, test, sale, etc

(1)

Where a licence is granted in Form IX or Form XI for conversion or repair, but not manufacture, of any category of firearms or ammunition, it entitles the licensee to fabricate components or parts, for the purpose of conversion or repair of such firearms or ammunition but not to manufacture such components or parts to be utilised for assembling into complete firearms or ammunition of any category which he is not allowed to manufacture.

(2)

(a)

A licence in Form XI shall not entitle the dealer to shorten a firearm or to convert an imitation firearm, into a firearm, unless he has a licence in Form IX showing specifically that he is permitted to shorten a firearm or convert an imitation firearm into a firearm.

(b)

Under no circumstances shall a dealer shorten the barrel of a rifle or smooth-bore gun so that the resultant length becomes less than 20 inches.

(c)

The details of the cases in which barrels are shortened and imitation firearms are converted into firearms shall be reported every month to the District Magistrate, in such form, if any, as may be required.

(3)

A dealer having a licence in Form XI, Form XII or Form XIII to [repair to test]

[Substituted by G.S.R. 1689, dated 9.9.1970.]

or to sell firearms or ammunition shall not take the firearms or ammunition for testing to a testing range or other place, unless specifically permitted to do so by his licence, and he shall carry out tests only in such manner and subject to such conditions as are laid down therein.

(4)

[Where a licence is granted

in Form IX or Form XI for conversion of ammunition, it shall not entitle the licensee to convert blank cartridges or any ammunitions having no projectile into single/multiple projectile ammunition or to load or re-load any ammunition.]

[Inserted by G.S.R. 703, dated 15.7.1981.]

22.

Proof-testing of firearms

(1)

Proof-testing of firearms manufactured by a licensed dealer shall be carried out only in accordance with the regulations which may be framed by the Central Government or framed by such authorities as the Central Government may specify in this behalf and approved by that Government.

(2)

No dealer shall sell a firearm which has not been duly proof-tested.

23.

Licensing authorities to furnish information to the District Magistrate

.A copy of every licence granted in any Form by any authority other than a District Magistrate shall be sent forthwith to the District Magistrate having jurisdiction over the area in which the place of business or residence of the licensee is situated.

24.

Sale or keeping for sale certain arms and ammunition

(1)

The State Government or, in the States of [Tamil Nadu] [[Substituted by G.S.R. 733, dated 1.7.1974.]], Andhra Pradesh or Kerala, the Board of Revenue, may, by licence granted by it in Form XI or Form XII, authorise selected dealers to sell or keep for sale a specified amount of ammunition of category

I(c).

(2)

A dealer possessing a licence in Form IX, Form XI, or Form XII shall not sell or transfer any arms or ammunition of category I(b) or I(c) to any person, unless the acquisition or possession of such arms or ammunition is expressly permitted in his licence or in his certificate of exemption.

25.

Identification marks on firearms

(1)

A manufacturer of firearms shall get every firearm manufactured by him stamped so as to show distinctly

(a)

the makers name and registered trade mark, if any;

(b)

the serial number of the weapon as entered in his register and the year of stamping; and

(c)

proof-mark;

as shown in the following Table:

(2)

When an imported firearm kept for sale by a dealer does not bear the manufacturers name, such distinguishing mark of the importer as allotted by the State Government shall be engraved on the barrel (adjacent to the number, if any,

existing thereon) and on other parts as shown in column (2) of the Table under sub-rule (1); if a barrel bears more than one number, the distinguishing mark shall be affixed to the number appearing on the original invoice. When the manufacturers number appears only on the trigger guard or other replaceable part, that number shall be engraved on the part shown in column (3) of the Table.

(3)

A person, who has in his possession any firearm which does not bear distinctly a manufacturers name, number or other identification mark as mentioned in sub-rule (1), shall get the identification mark stamped on the firearm consisting of

(a)

such distinct letters as may be prescribed for the purpose by the State Government;

(b)

serial number of the possession licence in the Arms Register of the licensing authority concerned or, in respect of the firearms in possession of a person exempt from the obligation to take out licence for their possession, the letters Ex; and

(c)

the year of stamping, in that order and in the following manner:

1. Rifles On the barrel and breech.
2. Guns and Pistols On the barrel.
3. Revolvers On the breech and cylinder.

26.

Records of transactions in arms and ammunition

(1)

Every dealer shall maintain such registers as may be prescribed by the Central Government to show receipts, disposals, balance of stocks in hand and daily sales of arms or ammunition of different categories and provide such other information as may be required.

(2)

Every entry of transactions in such registers shall be made before the close of business hours on the same day and in the case of a sale or transfer the dealer shall, at the time of the transaction, require the purchaser or transferee, if not known to him, to furnish particulars sufficient for identification, and shall immediately enter the said particulars in the registers.

27.

Inspection of premises, stock and record

.Every Magistrate and police-officer not below the rank of Inspector, or if the Central Government so directs, of Sub-Inspector, [acting within the local limits of his authority, or any officer of the Central Government specially empowered in this behalf may]

[Substituted by G.S.R. 3, dated 28.12.1967.]

(a)

enter and inspect the premises in which arms or ammunition are manufactured or in which arms or ammunition are kept by a manufacturer or in such arms or ammunition; and

(b)

examine the stock and accounts of receipts and disposals of arms and ammunition or any other register or document.

28.

Restrictions upon import or export for re-import of arms or ammunition

.A licence shall not be granted for the import or export for re-import of any arms or ammunition through the medium of post office.

29.

Import by sea or air

.Arms or ammunition shall be deemed to have been brought into India by a person when such arms or ammunition are imported through an agent and are either

(i)

consigned to such person direct, or

(ii)

consigned to the said agent, if the agent possesses, a certificate from the said person that the arms or ammunition are bona fide his property and the agent only clears the arms or ammunition from the customs house and forwards the same.

30.

Vessels entering the territorial waters of India

.Arms or ammunition carried by a vessel entering the territorial waters of India or leaving such waters, shall be deemed to be imported or exported as the case may be, irrespective of whether the vessel carrying the arms or ammunition does not berth.

31.

Import by land or river of arms and ammunition

(1)

Where a licence is granted in Form XVI and the articles are consigned to an area not on the frontier of India, a copy of the licence shall forthwith be sent by the authority granting it to the Government of the State concerned or the District Magistrate having jurisdiction over the area in which they cross such frontier; and the State Government/District Magistrate may in its/his discretion require the licensee to produce the arms or ammunition for its/his inspection before allowing the same to be taken out.

(2)

Where arms or ammunition are imported by rail, a copy of the licence shall forthwith be sent by the authority granting it to the railway authorities at the place to which such arms or ammunition are consigned.

32.

Bringing of arms or ammunition into India by bona fide tourists

.[(1) A licence, valid for a period of six months from the date of endorsement referred to in sub-rule (1-A), may be granted in Form III to bona fide tourists referred to in clause (b) of the proviso to sub-section (1) of section 10, so far as practicable, six months prior to the expected date of arrival of the tourist in India:

Provided that the validity of the licence so granted shall commence only from the date of endorsement of the said licence and that the arms and ammunition covered by the licence shall not be used till the date of endorsement of the licence.

(1-A) When a licence is granted in Form III to a bona fide tourist, under sub-rule (1), the licence, together with the passport/visa of the tourist, shall be presented to the licensing authority as soon as may be after the disembarkment of the tourist and the latter shall

(a)

after obtaining the undertaking referred to in sub-rule (2), endorse the licence making it valid for a period of six months from the date of the endorsement; and

(b)

make an entry in the passport/visa giving full particulars of all the arms and ammunition for which the licence has been granted].

(2)

The licensing authority shall obtain an undertaking in writing from the licensee that he shall not sell or transfer the arms or ammunition to anyone in India without the prior permission of the District Magistrate having jurisdiction over the place where such sale or transfer is to be made, and where the arms or ammunition are sold or transferred he shall inform the customs authority and pay the duty, if any.

(3)

The passport checking authority or any other officer empowered by the District Magistrate in this behalf at the port or other place of departure from India shall verify that the arms entered in the passport/visa are being taken out of India by the licensee and recover the licence and forward the same to the authority who issued it with the remarks that the arms have been duly re-exported or lawfully sold or transferred in India, as the case may be.

33.

Of exports

(1)

The authority granting a licence in Form XVII for export by sea or air of arms or ammunition from customs ports to ports

in foreign territory or Commonwealth shall send a copy of such licence to the agent or master of the vessel or to the air carrier by which the arms or ammunition covered by the licence are intended to be taken out of India.

(2)

The weapons of the following descriptions shall not be allowed to be exported, namely:

(i)

weapons falling within the definition of antiquity under the [Antiquities (Export Control) Act, 1947 (31 of 1947)]

[Now see the Antiquities and Treasures Act, 1972 (

52 of 1972

.]

;

(ii)

weapons of current and popular bores for which ammunition is available in the country; and

(iii)

automatic weapons and weapons which are in use by the police or the armed forces of the Union.

(3)

Every application for the grant of a licence in Form XVII or Form XVIII for export of firearms shall be accompanied by a certificate from the Director-General of Archaeology of the Central Government to the effect that the arms intended to be exported do not fall within the definition of antiquity under the [Antiquities (Export Control) Act, 1947 (31 of 1947)] [[Now see the Antiquities and

Treasures Act, 1972 (

52 of 1972

.]]. If the application is made to the

Central Government, it shall be accompanied by a further certificate from the licensing authority of the place from where the weapons are intended to be exported certifying that the weapons do not belong to any of the descriptions mentioned in sub-rule (2).

34.

Export by land or river of arms and ammunition

.When a licence for export of arms or ammunition by land or river is granted in Form XVIII a copy of the licence shall forthwith be sent by the licensing authority

(a)

where the arms or ammunition are exported by rail, to the District Magistrate of the place from which the consignment is to be despatched or, in the State of Jammu and Kashmir, to the State Government, and such authority shall forthwith send a copy to the railway authorities at the station from which the consignment is to be despatched;

(b)

where the arms or ammunition are exported by road or river, to the District Magistrate having jurisdiction over the area out of which they are to cross the frontier of India; and such Magistrate may, in his discretion, require the licensee to produce the arms or ammunition for his inspection before allowing them to leave the area.

35.

Export and re-import of arms and ammunition by sea or air

(1)

A licence in Form XIX may be granted for export of arms or ammunition by sea or air from one place in India and re-import into another place in India

(a)

by the Central Government or any other officer specially empowered by it, if

(i)

the arms or ammunition are taken by sea or by an International Air Service or across intervening territory not forming part of India, or

(ii)

the arms or ammunition form part of the estate of a deceased or insane person who was or is subject to the Indian Navy Act, 1957 (

62 of 1957

), or whose estate is dealt with under the Army and Air Force (Disposal of Private Property) Act, 1950 (40 of 1950), where such arms or ammunition are to be sent to the wife, widow, legal representative or next-of-kin of such deceased or insane person; or

(b)

by the licensing authority

(i)

for import, at the place of destination, or

(ii)

for export, at the place of despatch subject to the previous consent of the licensing authority at the place of destination as required under rule 50

if the arms or ammunition are carried by sea or by an internal air service.

Explanation. For the purpose of this rule, India includes any of ex-French Settlements in India.

(2)

A copy of every licence granted under sub-rule (1) shall forthwith be sent by the authority granting it to

(a)

the licensing authority/authorities of the place of despatch/destination of the articles as the case may be, or if the place of despatch/destination is in any of the ex-French Settlements in India, to the Secretary, General Administration Department, Government of Pondicherry; and

(b)

where the place of despatch/destination of the articles is other than a port

(i)

to the licensing authority at the port of export/re-import; and

(ii)

if the route includes transport by rail, to the railway authorities at the station from which the consignment is to be despatched.

36.

Arms or ammunition to be delivered to

Commissioner of Customs in certain cases

.Where a vessel or aircraft bound for a port other than a port in India calls at any port in India in the course of its voyage, and remains there for a period exceeding forty-eight hours, any arms or ammunition in the possession of any passenger not exempted from liability to take out a licence in respect of such possession shall be delivered by him to the Commissioner of Customs to be detained until the departure by sea or air, as the case may be, of such passenger, and it shall not be necessary for such passenger to take out any licence in respect of the arms or ammunition so delivered and detained.

37.

Prohibition of transport of arms and ammunition

(1)

Save as herein otherwise provided, no person shall transport over India or any part thereof any firearms or ammunition or any arms of category V, except under and in accordance with the conditions of a licence granted under these rules.

(2)

Nothing in sub-rule (1) or in section 12 shall be deemed to apply to arms or ammunition

(a)

transported personally or as personal luggage, in reasonable quantities for his own use, by a person lawfully entitled to possess or carry such arms or ammunition;

(b)

transported by a person licensed to manufacture such articles, for proof testing, in a case or package legibly addressed to a Government establishment or an establishment approved in this behalf by the Central Government, or re-transported by such establishment to such person;

(c)

of category V, transported through an area where the Central Government has, by notification in the Official Gazette, applied section 4, or from such area to an area where section 4 does not apply, provided that the weapons are properly

packed and labelled, showing clearly the description of the articles and the name and address of the consignee;

(d)

transported by a licensed dealer for export or after import, in accordance with a licence for their export or import,

(i)

from the place of despatch to the port or other place of export, or

(ii)

from the port or other place of import to the place of destination, or

(iii)

by transshipment in the port of import for re-export by sea or air;

(e)

transported

(i)

by a person lawfully entitled to possess such articles, in reasonable quantities for his own use from the premises of a licensed dealer, or for purposes of examination or repair or test to or from any such premises, or to the address of any other person lawfully entitled to possess such articles; or

(ii)

by a licensed dealer in a case or package legibly addressed to a person lawfully entitled to possess such articles, in compliance with an order given by such person for the supply of such articles, in reasonable quantities, for his own use or carrying out necessary repairs thereto;

(f)

being chlorates, transported for bona fide industrial, agricultural or medical purposes:

Provided that

(i)

transport of arms or ammunition under clause (d), clause (e) or clause (f) shall be subject to obtaining a certificate of no objection from the licensing authority at the destination of the articles as provided for in rule 50;

(ii)

transport of arms or ammunition personally for any of the purposes stated in sub-clause (i) of clause (e) without using them through any area outside the area of validity of his possession licence, shall be subject to his obtaining a permit from the licensing authority at the starting place of transport; and

(iii)

prior intimation of the transport of arms of category V under clause (c) or of chlorates under clause (f) shall be given to the officer in charge of the nearest police-station or a Magistrate having jurisdiction over the place of despatch.

(3)

The officer or Magistrate receiving prior intimation under clause (iii) of the proviso to sub-rule (2) shall immediately inform the District Magistrate and, if the articles are transported by rail, the superintendent of railway police having jurisdiction

(i)

over the place of destination in the case of transport of chlorates, and

(ii)

over the place of entry into the area, where section 4 applies, in the case of transport of arms of category V.

Explanation. For the purposes of this rule, transport includes movement of arms or ammunition across any part of the country, but does not include movement of arms or ammunition by a licensed dealer from a warehouse, godown or any other similar place to his factory, shop or other places of business within the same village, town or city.

38.

Transport of arms or ammunition

(1)

A copy of licence granted in Form XX for transport of arms or ammunition beyond the local limits of the jurisdiction of the authority granting it shall forthwith be sent to the District Magistrate having jurisdiction over the area where the place to which the articles are consigned is situated, or if such place is in the State of Jammu and Kashmir, to the Government of the State.

(2)

A copy of every such licence granted by a District Magistrate for transport within the limits of his jurisdiction shall forthwith be sent to the Subordinate Magistrate (if any) having jurisdiction over the place to which the arms or ammunition are consigned.

(3)

Where arms or ammunition are transported by rail, a copy of such licence or a copy of the no objection certificate referred to in rule 50 shall be attached to the way-bill or invoice, as the case may be, and telegraphic advice of every such consignment shall be sent by the railway authorities from the forwarding to the receiving station.

(4)

A licence of the transport of arms or ammunition shall not, save for special reasons to be recorded by the authority granting it, be granted for a period longer than twice the time likely to be occupied in the journey to the place of destination by the route indicated in the licence:

Provided that a licence for a longer period, not exceeding a quarter of a year at one time, may be granted in connection with industrial purposes for transporting ingredients of ammunition in instalments from the godown to the factory of the licensee situated within the same district but not in the same locality. A licensee transporting any ingredients of ammunition under such licence shall give prior intimation to the nearest Magistrate/officer in charge of the police station; and he shall make necessary entries promptly in the stock registers maintained for the purpose at both the godown and the factory.

39.

Licence for import, transport and re-export of arms and ammunition

.Where under the authority of a licence for import, transport and re-export of arms or ammunition granted in Form XIX, the arms or ammunition are to be

(a)

transported

across Indian territory entirely by rail, a copy of the licence shall forthwith be sent by the authority granting it, to the licensing authority and to the railway authority at the places from which the consignment is to be despatched;

(b)

transported across Indian territory and re-exported by land or river, a copy of the licence shall forthwith be sent by the authority granting it to the District Magistrate having jurisdiction over the area out of which the consignment is to cross the frontier of India.

40.

Scrutiny by authorities of consignments containing arms and ammunition

(1)

(a)

(i)

Where a package or case containing arms or ammunition is brought for export and transport, to a railway authority or shipping agent or a master of vessel or air carrier, the latter shall, before receiving the articles for despatch or despatching them, verify that they are accompanied by the original licence in the case of export or an attested copy of the licence in the case of transport or of export for re-import.

(ii)

Where a consignment is received after import, or transport, by an authority at a port checking import or by a railway authority, such authority shall require the production of the original licence before delivering the consignment.

(b)

Where arms or ammunition consigned to an area not on the frontier of India are imported, or where a consignment of arms or ammunition is exported, by land or river, the District Magistrate having jurisdiction over the area in India into or out of which it crosses the frontier of India or an officer appointed by him in this behalf shall require the licensee to produce original licence and may, in his discretion, require the licensee to produce the arms or ammunition for his inspection before allowing the articles to leave the area.

(c)

The aforesaid authority shall satisfy himself

(i)

that the licence accompanying the consignment or produce by the licensee is identical in substance with the copy sent

to him; and

(ii)

that the arms or ammunition correspond with the description given in such licence.

(2)

Where in any case referred to in sub-rule (1)

(a)

the original licence is not produced by the consignee or the original or attested copy of the licence does not accompany the case or package, as the case may be,

or

(b)

the licence is not identical in substance with the copy sent to the authority, or

(c)

the arms or ammunition do not correspond with the description given in such licence, the authority shall not receive the articles or despatch or allow the articles to proceed further or deliver the consignment, as the case may be, and shall, in case he is not a Magistrate, forthwith inform the nearest Magistrate.

41.

Production and delivery of licence for import/export/transport

(1)

The consignee of arms or ammunition imported/transported under a licence or his agent in the case of arms or ammunition exported under a licence shall

(a)

produce the licence, where the consignment in the course of import crosses the frontiers of India by land or river, within six days of such crossing, before the District Magistrate having jurisdiction over the area into which the consignment so crosses or before such other officer as the District Magistrate may appoint in that behalf;

(b)

deliver the licence within six days of the arrival of the consignment

(i)

at the destination, in case of such consignment has been imported or transported to a place in India, or

(ii)

in the area out of which such consignment, being exported/transported across Indian territory for re-export, is to cross the frontier of India and before it so crosses, to the District Magistrate having jurisdiction over the area in which the destination or place of crossing as the case may be, is situated, or such other officer as the District Magistrate/State Government may appoint in that behalf.

(2)

Every officer, to whom a licence is produced or delivered under sub-rule (1), shall satisfy himself that

(a)

the arms or ammunition correspond with the description given in the licence, and

(b)

any deficiency is properly accounted for.

(3)

If the officer to whom a licence is delivered under sub-rule (1) is an officer other than the District Magistrate, the licence shall be forwarded by such other officer to the District Magistrate.

42.

Import, transport and export of arms and ammunition for the Government of Nepal or the King of Nepal

(1)

Where arms or ammunition are imported into India for despatch to the Government of Nepal or His Majesty the King of Nepal, the customs authorities at the port of disembarkation, of the licensing authority in other places, shall check the consignment against the list of arms or ammunition received from the Central Government; the packages shall be sealed thereafter in the presence of a Customs Examiner or any other authority appointed for the purpose by the Central Government.

(2)

(a)

Where arms or ammunition imported into, or acquired in India are to be despatched to Nepal for the Government of Nepal, or His Majesty the King of Nepal, they shall be accompanied by a certificate from the Collector of Customs or the licensing authority of the area concerned to that effect; the certificate shall also contain a description of the marks on each package or case sufficient to enable it to be readily identified and a general statement of the contents of such package or case;

(b)

On receipt of requisition from the clearing agents or the firm concerned, as the case may be, the District Magistrate shall arrange for necessary escort up to the railway station;

(c)

The railway authorities shall not receive for despatch any package or case containing arms or ammunition unless accompanied by a certificate as required under clause (a).

(3)

Where in any case

(i)

the list referred to in sub-rule (1) is not received from the Central Government, or

(ii)

the arms or ammunition imported into, or intended to be despatched from India do not correspond with the description given in such list, the authorities concerned shall not allow the consignment to be despatched to Nepal and shall forthwith inform the Central Government.

43.

Transport of arms from any place in Nepal to any other place in Nepal through Indian territory

(1)

Notwithstanding anything contained in rules 8 and 28, the Ambassador of India in Nepal, on application made by or on behalf of His Majesty the King of Nepal, or the Government of Nepal and subject to confirmation by the Central Government, may grant a licence in Form XXI for the import into, possession in, transport across, or export out of, India from any place in the territory of Nepal to any other place in that territory across the frontiers of India, of arms or ammunition of categories I and II or any other category, by His Majesty the King of Nepal, personal accompanying him, his brothers, the Prime Minister of Nepal and Nepal Governments Troops or Police, as the case may be.

(2)

Where under the authority of a licence granted under sub-rule (1), arms or ammunition are to pass across Indian territory

(a)

if entirely by rail, a copy of the licence shall forthwith be sent by the Ambassador to the District Magistrate having jurisdiction over the areas through which the arms or ammunition shall pass across the frontiers of India and also to the railway authorities of the place in the Indian territory through which the consignment shall pass;

(b)

if by road or river, a copy of the licence shall forthwith be sent to the District Magistrate having jurisdiction over the areas through which the arms or ammunition shall pass to Nepal across the frontiers of India.

(3)

The Central Government, or the Ambassador with the approval of the Central Government, may make any order regulating the safe transit to Nepal across the frontiers of India of the arms or ammunition mentioned in this rule.

44.

Transit licences for bona fide travellers

(1)

Where a licence is granted in Form XXII, the licensing authority shall endorse the passport/visa of the tourist to that effect.

(2)

A copy of every licence granted in Form XXII shall forthwith be sent to such officer of the Government of the State in which the place of his departure from India is situated as may be specially empowered in this behalf by the State Government or the Administrator or Lieutenant-Governor or Chief Commissioner of a Union territory, as the case may

be.

(3)

(a)

The licensee shall not, while in India, sell or transfer any arms or ammunition covered by his licence without prior permission of the licensing authority of

the place where such sale or transfer is to be effected. He shall produce the arms or ammunition or the permission of the licensing authority, as the case may be, at the time of leaving India and return his licence to the passport checking authority, or other authority empowered by the District Magistrate in this behalf, at the port or other place of departure from India;

(b)

The passport checking authority or other authority to whom the licence is returned by the licensee, shall forward the same to the authority who issued it, with the remarks that the arms or ammunition have been duly exported, or sold or transferred with the permission of the authority concerned as required under clause (a).

45.

Licence to keep in custody arms and ammunition

.The licensee in Form XIV shall not accept for custody arms or ammunition without satisfying himself that there is no mala fide intention on the part of the depositor or any person on whose behalf the deposit is being made. The dealer shall either inform the nearest police station and the District Magistrate personally, or despatch information to the officer in charge of the police station and the District Magistrate by registered post on the day of deposit or return or disposal, as the case may be, of such arms or ammunition.

46.

Deposit of arms and ammunition under section 21

(1)

When a licensing authority decides to suspend or revoke a licence or to refuse to renew it, he shall, while communicating his decision in writing to the licensee, inform him that

(a)

under section 21(1) he is required to deposit within such time as may be specified in the order suspending, revoking or refusing to renew the licence, the arms or ammunition covered by the licence, either with the officer in charge of the nearest police-station or with a dealer holding a licence in Form XIV, or, in case he is a member of the armed forces of the Union, in the unit armoury;

(b)

subject to the proviso to section 21(2), during the period prescribed under sub-rule (4), he or, in the case of his death, his legal representative is entitled to sell or otherwise dispose of the arms or ammunition to any person lawfully entitled to possess the same and to receive the sale proceeds, if any; and

(c)

if the arms or ammunition have not been disposed of or their possession by the licensee or his legal representative, as the case may be, has not become lawful within the prescribed period, they shall, subject to the proviso to section 21(3), be forfeited to Government by order of the District Magistrate.

(2)

Where any arms or ammunition is deposited by an owner under section 21(1), in a police station or unit armoury, or with a dealer holding a licence in Form XIV, the officer in charge of the police station or unit armoury or the licensed dealer, as the case may be, shall

(a)

attach to each article deposited, a card showing the following:

Deposit under section 21(1)

(i)

Description (No. etc.) of the article

(ii)

Particulars of licence of exemption (if any)

(iii)

Name and address of depositor

(iv)

Serial No. in register and date of deposit

(v)

Date due for forfeiture/disposal

(vi)

.....
(vii)

.....
(Signature of dealer/or officer in charge
of police station/unit armoury).

(b)

issue to the depositor a receipt containing the same details as in (a); and

(c)

immediately send a copy of the receipt to the authority who granted the licence or renewed it last.

(3)

(a)

(i)

Any arms or ammunition deposited in a unit armoury under section 21(1) may, unless returned or disposed of earlier, be transferred, after the expiry of a period of 30 days after such deposit to the nearest police station.

(ii)

Any arms or ammunition deposited in a police station under section 21(1) which have not been returned or disposed of within 30 days of the deposit and the arms or ammunition transferred under clause (i) may be transferred for the sake of better maintenance or safety to a police armoury in the district/taluqua headquarters or such other place as may be specified by the District Magistrate, in accordance with such instructions as may be issued by the State Government for the purpose:

Provided that the District Magistrate, may, when he considers it desirable, extend the said period of 30 days.

(b)

Intimation of such transfer shall be given to the depositor of the article and to the licensing authority who granted or last renewed the licence for the article.

(4)

The period within which a depositor or his legal representative may exercise his rights under sub-section (2) of section 21 shall be

(a)

Six months from the date of deposit, if the arms or ammunition are deposited as a consequence or contravention by its, owner of any provision of the Act or these rules or any condition of the licence.

(b)

One year

(i)

from the date of deposit, if the arms or ammunition are deposited as a consequence of its possession becoming unlawful under section 21(1) otherwise than as under clause (a); or

(ii)

if it is already in deposit, from the date of communication to the owner, of the order revoking, suspending, or refusing to renew the licence; or

(iii)

from the date of notification issued under section 4:

Provided that any period under clause (a) or (b) shall be reckoned

(i)

where an appeal is preferred by the owner under section 18 from the date of the final order of the appellate authority;

(ii)

where the arms or ammunition is the subject of a legal suit or dispute or is owned or inherited by a person who has not completed the age of sixteen years from the date of termination of the dispute or of completion by that person of the age

of sixteen years; and

(iii)

where

the owner of the arms or ammunition is on active service outside India-from the date of his return to India:

[Provided further that

(i)

when the arms or ammunition is owned by a person who is considered by the licensing authority to be unfit, for the time being to carry the arms or ammunition for any reason, or in any other suitable case, the District Magistrate or the Commissioner of Police, in relation to any metropolitan area, may extend the period prescribed under clause (a) or clause (b) for a period upto six months; and

(ii)

the State Government may by special or general order extend the period beyond six months:

Provided further that when the arm or ammunition is owned by a person who is considered by the licensing authority to be unfit, for the time being, to carry the arms or ammunition for any reason, the period prescribed under clause (a) may be extended suitably by the District Magistrate, or the Commissioner of Police in relation to any metropolitan area.]

[Substituted by G.S.R. 509, dated 26.5.1982.]

(c)

[[Two years] if the firearms are deposited as a consequence of proviso to sub-section (2) of section 3.]

(5)

(a)

Any arm or ammunition not returned or disposed of before the expiry of the period prescribed under sub-rule (4) shall be notified to the District Magistrate; and subject to the provisos of sub-rule (4) and the proviso to the section 21(3), transferred to the district malkhana or such other place as required by order of the District Magistrate, for the purpose of forfeiture under section 21(3).

(b)

The District Magistrate shall, before making an order of forfeiture after the expiry of the prescribed period serve a notice as required under section 21(4) in like manner as for service of summons under the [Code of Criminal Procedure, 1898 (5 of 1898)] [[Now see the Code of Criminal Procedure, 1973 (2 of 1974).]:

Provided that, in the case of the depositor being a member of the armed forces of the Union, the notice shall be served personally through the Commanding Officer of such member.

(6)

Charges for maintaining in good condition articles deposited may be levied at such rates as may be fixed from time to time by the State Government.

47.

Deposit of arms and ammunition for safe custody otherwise than under section 21

(1)

(a)

A person lawfully possessing arms or ammunition may deposit them for safe custody with a dealer holding a licence in Form XIV or in a police station or, if he is a member of the armed forces of the Union, in a unit armoury;

(b)

before accepting the arms or ammunition for deposit otherwise than under section 21(1), the dealer or officer in charge of a police station or unit armoury shall satisfy himself that they are possessed under a valid licence issued under the Act and these rules or under exemption from the need for such licence;

(c)

members of the armed forces of the Union may be allowed to keep their arms or ammunition in safe custody in a unit armoury only during the tenure of their service.

(2)

Where the arms or ammunition have been deposited under sub-rule (1), the dealer or the officer in charge of the police station or unit armoury shall

(a)

attach to each article deposited a card, easily distinguishable from that described in rule 46(2)(a) showing the following:

Deposit for safe custody:

(i)

Description (No. etc.) of the article

(ii)

Name and address of depositor

(iii)

Particulars of licence/exemption

(iv)

Serial No. in register and date of deposit

(v)

Date of expiry of licence

(vi)

Date up to which deposited

(vii)

.....

(Signature of depositor)

(viii)

.....

(Signature of dealer or officer in charge of police station/unit armoury).

(b)

issue to the depositor a receipt containing the same particulars as in clause (a); and

(c)

on the same day send a copy of the receipt to the authority who granted the licence or renewed it last.

(3)

(a)

In the event of failure to get the licence renewed, the arms or ammunition shall continue to be possessed by the dealer on the authority of his licence in Form XIV or by the officer in charge of the police station or unit armoury; but, if the licence is not renewed for a period of 3 years after its expiry, the dealer or the officer in charge of the police station or unit armoury shall bring this to the notice of the District Magistrate for such action as he may consider necessary.

(b)

the articles shall in no case be returned to the owner, unless the licence to possess them is renewed or a new licence is obtained.

(4)

[The

depositor may be charged a fee for the custody of the articles deposited at the following rates:

1. For each fire arm Fifty rupees per year or portion thereof.

2. For every other weapon or package of ammunition Rs. 25 per year or portion thereof.

Any extra charges for maintenance of the articles in good condition may be levied at such rates as may be fixed from time to time by the State Government.]

[Substituted by G.S.R. 1, dated 19.12.1997 (w.e.f. 3.1.1998.)

48.

Records and returns of the articles deposited

(1)

The dealer, or the officer in charge of the police station or unit armoury shall maintain such registers as may be prescribed by the Central Government.

(2)

A copy of the entries in the registers relating to the quarters ending on the last day of March, June, September and December each year, certified as true copy under the signature of the dealer or officer in charge, of the police station or unit armoury, as the case may be, shall be forwarded to the District Magistrate as early as possible after the expiry of each quarter.

(3)

The licensed dealer or the officer in charge of the police-station or unit armoury or of any other place specified under rule 46(3)(a)(ii) where the arms or ammunition are kept, shall submit to the District Magistrate by the 15th in December each year, a report showing the particulars of arms or ammunition in their custody which have, or will become liable to forfeiture by the end of that year.

49.

Inspection

(1)

Arms and ammunition deposited in a police station or with a dealer and those transferred to the district malkhana and the register maintained for the purpose shall be inspected periodically by the District Magistrate or other officer appointed by the State Government in this behalf in accordance with such procedure as may be prescribed by the State Government.

(2)

The arms or ammunition deposited in a unit armoury and the register maintained for this purpose shall be inspected periodically by the officer commanding the unit or any other officer empowered by him in accordance with the procedure prescribed by the Government of the State, where the unit is for the time being located.

50.

Previous consent in certain cases

(1)

A licence having effect beyond the local limits of the authority of the officer granting it shall not be granted for the transport or export or re-import of any arms or ammunition to a place, without ascertaining that there is no objection to the grant of such licence on the part of

(i)

the District Magistrate having jurisdiction over the area in which such place is situated; or

(ii)

the Government of the State of Jammu and Kashmir, if such place is in that State; or

(iii)

the Secretary, General Administration Department, Government of Pondicherry, if such place is in any of the ex-French Settlements in India.

(2)

For the purposes of sub-rule (1), either

(i)

a certificate of no objection may be obtained by the applicant for the licence; or

(ii)

an enquiry may be made by the authority to whom application for grant of such licence is made.

51.

Application for licence

.Every application for the grant of a licence under these rules

(a)

shall be submitted in Form A;

(b)

may be presented by the applicant in person or sent through the medium of post office or otherwise, to the licensing authority, as far as possible having jurisdiction in respect of the place, where he ordinarily resides or has his occupation;

(c)

shall contain all such information as is necessary for the consideration of the application, and in particular

(i)

where the application is for a licence for the acquisition, possession and carrying of arms and ammunition for crop-protection, shall specify details of the land and cultivation requiring protection and area within which the arms or ammunition are required to be carried;

(ii)

where the application is for a licence for import by land or river or for export or for transport or for export and re-import, or for import, transport and re-export of arms or ammunition, shall specify the place or destination, the route, the time likely to be occupied in the journey and the quantity, description and price of each kind of arms or ammunition in respect of which the licence is required and the purpose for which they are intended;

(d)

where the grant of licence requires a certificate of no objection from some other authority as provided in rule 50, shall state whether such certificate has been obtained and, if so, shall be supported by evidence thereof;

(e)

[where an application is for the grant of licence in Form II, Form III, Form III-A, Form IV, Form V or Form VI from a person other than a bona fide tourist as defined in section 10(1)(b) of the Act, it shall be accompanied by two passport size copies

of the latest photograph of the applicant]

[Inserted by G.S.R. 431, dated 11.2.1969.]

:

Provided that

(i)

an application by a member of the armed forces of the Union shall be made through his Commanding Officer to the licensing authority having jurisdiction in respect of the place to which he is for the time being posted; and

(ii)

the licensing authority may, in accordance with any instructions issued by the State Government in respect of all or any class of firearms, require the personal attendance of the applicant before granting or renewing the licence applied for.

[51-A.

[Inserted by G.S.R. 52(E), dated 24.1.1989.]

The applicant shall not suppress any factual information or furnish any false or wrong information in the application form.]

[Substituted by G.S.R.1019, dated 22.5.1968.]

52.

Form of licence

[(1) A licence in Form II, Form III, Form III-A, Form IV, Form V or Form VI, if granted for more than a year to a person other than bona fide tourist as defined in section 10(1)(b) of the Act, shall be in book-form and shall contain the latest photograph of the licensee.] [[Substituted by G.S.R. 431, dated

11.2.1969

.]]

(2)

When a licence is granted in Form II, Form III, Form III-A, Form IV, Form V or Form VI for the possession of arms to be acquired by the licensee subsequent to the grant of the licence, the authority granting the licence shall at the time of granting the same, direct that within a period specified by him, in this behalf, which he may from time to time extend, the arms covered by the licence shall be acquired and that the licence or the arms or both shall be produced for his inspection and if within the period so specified or extended the licensee fails to acquire the arms and to produce the licence or the arms or both, as the case may be, the licence shall cease to be in force:

Provided that, if during the period so specified or extended, the licensee

wishes to acquire and possess any weapon or weapons of a different description and the licensing authority has no objection to allow the acquisition and possession of such weapon or weapons, he may amend the licence accordingly:

[Provided further that

(i)

where the licensing authority is the State Government, the licensee residing at any place within the State in which the license was issued may produce the licence

or the arms or both for inspection, before the State Government or any authority which the State Government may, by a general or special order, specify in this behalf;

(ii)

where the licensing authority is the State Government, the licensee may, if he changes his place of residence from one State to another State, produce the licence or arms or both for inspection before the Government of the second mentioned State or any authority which that Government may, by a general or special order, specify in this behalf;

(iii)

where the licensing authority is other than the State Government, the licensee may if he changes his place of residence, produce the licence or arms or both for inspection before the licensing authority of the place of his new residence to which the licensee may have shifted after the grant of licence, within the period so specified, or extended and the authority other than the licensing authority who inspected the arms as well as the licensee shall intimate the fact of such inspection to the authority who issued the licence.]

53.

Variation of conditions of licences

(1)

On application from a licence-holder, a licensing authority may extend the area of validity specified in his licence, if he is satisfied about the need of such extension, subject to the condition that the licensing authority has the power to grant a licence in relation to the area to which extension is sought.

(2)

On application from a company holding a licence in Form II or Form III, for a change in the name of the member, agent or other representative of the company in whose name the licence has been granted or of a retainer included in the licence the necessary amendment may be made in the licence by the licensing authority.

54.

Renewal of licences

(1)

Every licence may, at its expiration and subject to the same condition (if any) as to the grant thereof, be renewed by the authority mentioned in Schedule II as renewing authority:

[Provided that the licence so renewed may be signed in the appropriate column of the licence by such officer as may be specially empowered in this behalf by the State Government under rule 4.]

[Added by G.S.R. 1011(A), Dated 7.8.1972.]

(2)

The authority issuing a licence shall ordinarily be responsible for watching all future renewals of the licence. Where a licence is renewed by an authority other than the authority who granted it, the former shall forthwith inform the latter of the fact of

renewal and the period for which such renewal is valid. The applicant for the renewal of a licence under this rule shall always be required to state his permanent residence, and, if he notifies a change in his permanent residence to the district in which the renewal is sought, the licensing authority of such district shall hence-forward become responsible for watching all future renewals of his licence and shall inform the original issuing authority accordingly. The procedure shall be repeated on each subsequent occasion of renewal of the licence, the necessary intimation being sent by the renewing authority to the original issuing authority or to the authority who last renewed the licence on a permanent change of residence, as the case may be.

(3)

An application for renewal of a licence for arms or ammunition deposited under sub-rule (1) of rule 47 may be made by the depositor, or where it is not practicable to make the application direct, through the dealer or any other person authorised by him in this behalf while the arms or ammunition continue to be so deposited.

(4)

The licensing authority may consider an application for renewal of a licence, if the period between the date of its expiry and the date of application is not, in his opinion, unduly alongwith due regard to the circumstances of the case, and all renewal fee for the intervening period are paid; otherwise the application may be treated as one for grant of a fresh licence.

(5)

[The licensing authority and the renewing authority at the Centre or at the State level, while granting a licence or renewing a licence, as the case may be, shall enter the data of the record in an electronic format duly approved by the Central Government or the State Government, as the case may be.

(6)

The licensing authority and the renewing authority shall also enter such data as are required in an electronic automated system as developed by the National Informatics Centre for this purpose and the aforesaid electronic automated system shall generate a unique number without which no arms licence shall be considered as valid with effect from the [1st April, 2016.]

55.

[Appeal against the order of a licensing authority or an authority suspending or revoking a licence under section 17.

(6)

]

[Substituted by G.S.R.1470, dated 23.5.1963.]

.In any case in which an authority issues an order

(a)

refusing to grant or renew a licence or to give an objection certificate for such grant or renewal, or

(b)

varying any condition of a licence or suspending or revoking a licence under sub-section (1), or sub-section (3), or sub-section (6) of section 17, the person aggrieved by such order may, within thirty days from the date of issue of the order, and subject to the proviso to sub-section (2) of section 18, prefer an appeal against that order to the concerned appellate authority.

56.

Procedure to be followed by the appellate authority

.On receipt of an appeal the appellate authority may call for the records of the case from the authority who passed the order appealed against and after giving the appellant a reasonable opportunity of being heard pass final orders.

57.

Fees payable for licence

(1)

(a)

[Every licence granted or renewed under these rules shall, save as herein otherwise expressly provided, be chargeable with the fee (if any) specified in Schedule IV.]

[Substituted by G.S.R. 1, dated 19.12.1997 (w.e.f. 3.1.1998.)

(b)

In any case where fee is prescribed for a year, fee for a fraction of a year shall be the same as for a whole year.

(2)

Where a licensee submits his application for renewal of his licence after the expiry of the period for which the licence was granted, the licensing authority may, if he decides to renew the licence, at his discretion levy

(a)

full fee as for initial grant of the licence, and

(b)

if he is satisfied that the delay is not justifiable, or excusable, nor serious enough to warrant revocation of the licence or prosecution of the licensee, a late fee not exceeding the amount of the licence fee is charged, or [Rs. 100]

[Substituted by G.S.R. 1, dated 19.12.1997 (w.e.f. 3.1.1998.)

in other cases.

(3)

The Central Government may, by general or special order and for reasons to be recorded in writing and subject to such conditions, if any, as it may specify in the order, grant exemption from, or reduction of, the fee payable in respect of any licence:

Provided that it shall be a condition of every exemption from payment of the fee chargeable in respect of the grant or

renewal of any licence, in Form III that if application for renewal of such licence is not made within one month of the date on which the licence expires, the licensing authority may, unless the applicant satisfies the licensing authority that he had sufficient cause for not making the application within that period, levy renewal fee at the rate specified in the Form.

(4)

No separate fee shall be chargeable from retainers.

(5)

No fee shall be chargeable in respect of the grant or renewal of a licence in Form XV by a State Government or the Board of Revenue (in the State of Andhra Pradesh, Kerala or [Tamil Nadu]

[Substituted by G.S.R. 783, dated 1.7.1974.]

for the import of sulphur in reasonable quantities, if the State Government or the Board of Revenue is satisfied that the sulphur is required in good faith for medicinal, industrial or agricultural purposes (other than for manufacturing arms, ammunition or explosives).

(6)

Any political representative authorised to grant licences in Form XVIII may remit the fee payable in respect of the grant or renewal of any such licence in the case of arms or ammunition exported for personal use, or in the case of ammunition exported for use for blasting purpose (whether on a public work or not) of the Government of any territory or place outside India.

(7)

(i)

No fee shall be chargeable for the grant of a licence for export and re-import of any arms or ammunition in a case of package legibly addressed to a person lawfully entitled to possess such articles, in compliance with a requisition made by a such person for the supply of such articles in reasonable quantities for his own use or after carrying out necessary repairs thereto.

(ii)

Where any arms or ammunition are imported under a licence into any customs port in India and re-exported thence for re-import into any other customs port in India under rule 35 the necessary licence for such re-export and re-import under the said rule shall be chargeable with a fee of rupees one hundred only.

(8)

No fee shall be chargeable in respect of

(i)

a change of description of the weapon entered in a licence granted for its acquisition under the proviso to rule 52(2) but if the licence fee in respect of the weapon so changed is higher than that for the original weapon, the difference of such fee may be charged;

(ii)

an endorsement under rule 12 of a licence granted in the State of Pondicherry or endorsement to extend or change the area of validity of a licence under sub-rule (1) of rule 53;

(iii)

a change of name, under rule 53(2), of member, agent or other representative of the company or retainer; or

(iv)

a grant of consent or permit certificate or endorsement or any other document under these rules, except as otherwise expressly provided.

58.

Fee payable for copies and duplicates

.Where a licence granted or renewed under these rules is lost or accidentally destroyed, the authority empowered to grant such licence may grant a duplicate

Substituted by G.S.R. 1, dated 19.12.1997 (w.e.f. 3.1.1998.) (a) where the original licence was granted without the payment of any

fee, on payment of a fee of [Rs. 50]

[Substituted by G.S.R. 1, dated 19.12.1997 (w.e.f. 3.1.1998.)]

; and

(b)

in any other case on payment of a fee of [Rs. 100] [[Substituted by G.S.R. 1, dated 19.12.1997

(w.e.f. 3.1.1998.)]] or the fee with which the original licence was chargeable; whichever is less.

59.

Fee payable on a petition for appeal made under section 18(1)

.Every petition for appeal under section 18(1) shall be accompanied by a fee of

(a)

[Rs. 100]

[Substituted by G.S.R. 1, dated 19.12.1997 (w.e.f. 3.1.1998.)]

, if the fee for the licence in relation to which the appeal is preferred is [Rs.

50.

]

[Substituted by G.S.R. 1, dated 19.12.1997 (w.e.f. 3.1.1998.)]

or more; and

(b)

[Rs. 50]

[Substituted by G.S.R. 1, dated 19.12.1997 (w.e.f. 3.1.1998.)]

in any other case.

60.

Collection of fees

.All fees payable shall be paid in cash either in person or, at the option of the person concerned, by a money order/postal order, at the time of application.

61.

Dealers to maintain registers, etc., in certain cases

.Where no licence is required for the manufacture, sale, import, export or transport of any category or description of arms or ammunition by or through a dealer, the dealer may be asked to registers his name and address and place of business in such manner and at such place as the Central Government may prescribe and the dealer shall maintain such register and furnish such information to the Central Government as it may require in respect of the arms or ammunition so manufactured, sold, imported, exported, or transported.

62.

Production of licence

(1)

Any person who

(a)

holds a licence granted or renewed or a pass, permit or certificate granted under these rules, or

(b)

is acting under colour of such licence, pass, permit or certificate, shall forthwith produce such licence, pass, permit or certificate upon demand by any Magistrate or any police officer of a rank not below that of an officer in charge of a police station.

(2)

While granting or renewing a licence, no authority shall impose a condition inconsistent with sub-rule (1).

(3)

[If a person who holds a

licence in Form II changes his place of residence, permanently or temporarily for more than thirty consecutive days, and carries with him the weapon covered by the licence, to a place other than indicated in column 2 of the licence, he shall [within thirty

days of such change]

[Inserted by G.S.R. 653, dated 17.5.1975.]

, send intimation about such change to the licensing authority of the place of his new residence as well as to the authority which granted the licence or last renewed it, as the case may be, and shall on demand forthwith produce the licence and the weapon to the first mentioned authority for making necessary entry in the licence to indicate therein the

particulars of the new residence of the licensee.]

[Inserted by Notification No. G.S.R. 585 (E) dated 24.7.2012]

(4)

[The licensee shall

intimate within a period of thirty days in regard to change of residence to the licensing authority of the new place of his residence and produce his licence before the licensing authority of the new place for appropriate endorsement. On such change of residence and after such endorsement on the licence, the said licence shall be deemed to have been transferred to the jurisdiction of the licensing authority and renewing authority of the new place of residence and such authority shall be the licensing authority and the renewing authority in relation to the said licence for purposes of provisions of the Arms Act, 1959 and the Arms Rules, 1962.]

[Inserted by G.S.R. 1250, dated 4.10.1978.]

63.

Production of arms

.The authority by whom any licence in Form II, Form III, Form IV, Form V or Form VI has been granted or renewed may, for the purpose of satisfying itself that any arms covered by such licence are still in the possession of the licensee, at any time while the licence is in force, by order in writing, require the licensee

(a)

to produce the arms at such time and place for inspection of such officer as may be specified in the order; or

(b)

at the option of the licensee, to produce a certificate from

(i)

a Magistrate or the officer in charge of the nearest police station in whose jurisdiction the licensee resides or has his occupation, or

(ii)

if he is a Government servant, a Gazetted Officer to whom he is subordinate,

to the effect that he has seen the arms in the possession of the licensee and that they correspond to the description given in the licence.

64.

Savings

(1)

The Indian Arms Rules, 1951, are hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken (including any exemption, exclusion or withdrawal made, fee imposed, levied, remitted or reduced or power conferred) or deemed to have been done or taken under the said rules, shall, so far as it is consistent with these rules, be deemed to have been done or taken under the corresponding provisions of these rules.

I

(See rule 3)

Category

Arms

Ammunition

1

2

3

I

(a) Prohibited arms as defined in section 2(1)(i) and such other arms as the Central Government may, by notification in the Official Gazette, specify to be prohibited arms.

Prohibited ammunition as defined in section 2(1)(h) and such other articles as the Central Government may, by notification in the Official Gazette, specify to be prohibited ammunition.

(b) [Semi-automatic firearms, other than those included in categories I(c) and III(a), smooth-bore guns having barrel of less than 20" in length.

[Substituted by G.S.R. 1638, dated 2-7-1969.]

Ammunition for arms of category I(b).

(c) Bolt action or semi-automatic rifles of

".303" or 7.62 mm bore or any other bore which can chamber and fire service ammunition of ".303" or 7.62 mm., calibre; muskets, of .410 "bore or any other bore which can fire .410" musket ammunition; pistols, revolvers or carbines of any bore which can chamber and fire ".380" or ".455" rimmed cartridges or service 9 mm, or ".45" rimless cartridges.]

Ammunition for firearms of category I(C).

(d) Accessories for any firearms designed or adapted to diminish the noise or flash caused by the firing thereof.

Nil.

II

Machinery for manufacture or proof-testing of a firearm.

Machinery for manufacturing ammunition.

III

Firearms other than those in categories I, II, and IV, namely:

Ammunition for firearms other than those in categories 1, II and IV, namely:-

(a) Revolvers and pistols.

Ammunition for firearms of category III(a).

(b) Breach-loading rifles other than .22 bore rifles mentioned in category III(c) below.

Ammunition for firearms of category III(b).

(c) .22 bore (low velocity) rifles using rimfire cartridges breech-load smooth bore guns and air-rifles.

Ammunition for firearms of category III(c).

(d) Air-guns and muzzle-loading guns.

Ammunition for firearms of category III(d).

IV

Curios and historical weapons other than those excluded under section 45(c).

Curious and historical ammunition.

V

Arms other than firearms: Sharp-edged and deadly weapons, namely-Swords (including sword-sticks), daggers, bayonets, spears (including lances and javelins); battle-axes, knives (including kripans and khukries) and other such weapons with blades longer than 9" or wider than 2" other than those designed for domestic, agricultural, scientific or industrial purposes, steel baton; "Zipo" and other such weapons, called "life preservers", machinery for making arms, other than category II, and any other arms which the Central Government may notify under section 4.

Nil.

VI

(a)[Articles containing explosives or fulminating materials; fuses and frictions tubes other than blank fire cartridges].

[Substituted by G.S.R. 994(E), dated 19-12-1990 (w.e.f. 19-12-1990).]

(b) Ingredients as defined in section 2(1)(b)(VII).

Note. - Parts and accessories of any arms or ammunition and charges for firearms and accessories for charges belong to the same category as the arms or ammunition.

[SCHEDULE II

[Substituted by G.S.R. 52 (E), dated 24-1-1989.]

(See rule 4)

LICENSING AUTHORITIES, ETC.

Item No.

Purpose

Categories of arms/ammunition as defined in Schedule I

Place/Class of persons

Licensing Authority

Area for which licences can be granted

Renewing Authority

Form No.

Conditions

1
2
3
4
5
6
7
8
9
1.

Acquisition / Possession / import and transport

I(a), II

Whole of India

Central Government in the Ministry of Home Affairs

Whole of India or any specified area

Central Government in the ministry of Home
Affairs

I

-

2.

Acquisition and possession only

III(b),

III(c),

III(d),

V, VI

District or any specified area

District Magistrate

Throughout the District or his area or jurisdiction or any specified part of his jurisdiction.

District Magistrate

II

-

3. [

[Substituted by G.S.R. 404(E), dated 28-3-1990.]

Acquisition / possession / carrying and use for protection / sport / target practice / display

(a) I(b), I(c)

Whole of India

Central Government in the Ministry of Home Affairs

Whole of India or any specified part thereof

[District Magistrate]

[Substituted by G.S.R. 755(E), dated 18-10-1994.]

III

-

b) I(d)

III, V, VI

(i) District

District Magistrate

Throughout the District or his area or jurisdiction or any specified part of his jurisdiction.

District Magistrate

III/IV

-

(ii) State

District Magistrate

Whole of the State or any specified part thereof

District Magistrate

III/IV

-

(iii) Whole of India

State Government

Whole of India or any specified part thereof

District Magistrate

III/IV

Note.-In case of target practice, premises for target practice to be specified in licence on Form IV

(c) III

(a) In case of persons residing in Nepal

Ambassador of India in Nepal

India or any specified part thereof

Same as licensing authority or any other authority empowered to grant a licence of the description

III

-

(b) In case of persons residing in Bhutan

Ambassador of India in Bhutan

India or any specified part thereof

Same as licensing authority or any other

authority empowered to grant a licence of the description

III

-

(c) In case of tourists as defined in section 10(1)(b) if the place of arrival of the tourists is: (i) Jammu & Kashmir

(i) State Government or an officer specially empowered by the Government.

(i) India or any specified part thereof

No renewal

III*

*The licence shall be valid for a period of six months only and granted only for the purpose of sport and possession

(ii) Any other place in India

(ii) Head of the Mission or Head of the Chancery in the country notified under Section 10(1)(b) to which tourist belongs, or

District Magistrate or any other officer specially empowered by Central Government

(i) India or any specified part thereof

No renewal

III*

*The licence shall be valid for a period of six months only and granted only for the purpose of sport and possession

(d) I.(b), I(c)

In case of retainers of exemptees-

Central Government in the Ministry of Home Affairs

India or any specified part thereof

State Government or any officer specially empowered by the State Government in this behalf

IIIA

-

(e) I (d)

III, V, VI

In case of retainers of exemptees-

-

(i) District

District Magistrate

Throughout the District or his area of jurisdiction or any specified part of his jurisdiction.

District Magistrate

IIIA

-

(ii) State

District Magistrate

Whole of the State or any specified part thereof

District Magistrate

IIIA

-

(iii) Whole of India

State Government

Whole of India or any specified part thereof

District Magistrate

IIIA

-]

4.

Acquisition / Possession and carrying for destruction of wild animals which do injury to human beings / cattle and for protection of crops and cattle

III (b),

III (c),

III (d), V

District or any specified area

District Magistrate or any officer specially empowered by the State Government in this behalf

Throughout the District or his area of jurisdiction or any specified part of his jurisdiction

Same as licensing authority.

IV/V

The licence shall be granted in the appropriate form to the purpose for which it is applied

5.

Carrying on Journey in or through any part of India

All

(i) In Jammu & Kashmir

(i) State Government

-

(ii) In other places

(ii) District Magistrate, Sub-divisional Magistrate specially empowered by the State Government

India or any specified part thereof

No renewal

VII

-

(iii) In case of persons residing in Nepal

(iii) Ambassador of India in Nepal

India or any specified part thereof

No renewal

VII

-

6.

Temporary possession by bona fide travellers visiting India

I(c), II,

V

At place of arrival:

IIIA

-

(i) In Jammu & Kashmir

(i) State Government or any officer specially empowered by that Government

India or any specified part thereof

No renewal

VIII

-

(ii) Elsewhere in India

(ii) District Magistrate or any officer specially empowered by the State Government

India or any specified part thereof

No renewal

VIII

-

7.

Manufacture, conversion, shortening, repair, test (other than proof test), sale, transfer, keeping for sale, transfer, conversion or test of arms and ammunition

(a) All

(a) Throughout India

(a) Central Government in the Ministry of Home Affairs

Within the premises to be specified in the licence

(a) State Government

IX

-

(b) V, VI

(b) Throughout India

(b) District Magistrate or any other officer specially empowered in this behalf by the State Government / Administrator of Union Territory

Within the premises to be specified in the licence

(b) Same as licensing authority

IX

-

8.

Conversion (except firearms) repair or test (other than proof test), transfer, sale, keeping for sale, repair or test or transfer

I(b), I(c)

Throughout India

Central Government in the Ministry of Home Affairs

Within the premises to be specified in the licence

State Government

XI

-

9.

Conversion (except firearms) repair or test (other than proof-test), transfer, sale keeping for sale, repair or test or transfer

I (d), III, V, VI

State

State Government

Within the premises to be specified in the licence

State Government

XI

-

10.

Conversion of ingredient of ammunition into explosives/or transfer

VI(B)

(I) In Jammu & Kashmir

State Government

Within the premises to be specified in the licence

State Government

XI

-

(ii) In other places

District Magistrate or any officer specially empowered by the State Government

Within the premises to be specified in the licence

Same as licensing authority

XI

-

11.

Sale, Transfer, or test (other than proof-test) and keeping for sale, transfer or test

I(b) and I(c)

Throughout India

State Government

Within the premises to be specified in the licence

State Government

XII

-

12.

Sale, Transfer, or test (other than proof-test) and keeping for sale, transfer or test

I (d), III, V

State

State Government

Within the premises to be specified in the licence

State Government

XII

-

13.

Sale, Transfer, or test (other than proof-test) and keeping for sale, transfer or test

III(c), III(d) V, VI

State

State Government or any officer specially empowered State Government

Within the premises to be specified in the licence

Same as licensing authority

XII

-

14.

Keeping for sale custody

All

State

State Government or any officer specially empowered by State Government

Within the premises to be specified in the licence

Same as licensing authority

*XIV

*To be given only to holders of a licence in any of the Forms IX, XI, XII, XIII

15.

Import by sea or air

(a) I(b), I(c), I(d)

(a) At any customs port in India

(a) Central Government in the Ministry of Home Affairs

No renewal

I

(b) III, IV, V, VI

At any customs port in India

(b) District Magistrate in whose jurisdiction the port lies

No renewal

XV

(c) Sulphur

(c) At ports of Kakinada Tuticorin & Cochin

(c) State Government in* Tamil Nadu, Andhra Pradesh or Kerala

No renewal

XV

*In reasonable quantities for medicinal, agricultural or Industrial purposes

16.

Import by land or river

(a) I(b), I(c), I(d)

(a) Throughout India

(a) Central Government in the Ministry of Home Affairs

-

No renewal

I, XVI

(b) III, IV, V, VI

(b)(i) In Jammu & Kashmir.

(b)(i) State Government

-

No renewal

XVI

(ii) At other

(ii) District Magistrate

-

17.

Export by sea or air to foreign

territory including common-wealth countries

(a) All

From any customs port in India to a port in a Foreign Territory

(a) Central Government in the Ministry of Home Affairs or any officer specially empowered by the Central Government in the Ministry of Home Affairs

-

No renewal

XVII

*Subject to the condition that the licensing authority is satisfied that: (i) the arms are not meant for sale or for military purpose but are meant for the personal use of the consignee; and

*(b) III (b),

III(c), III(d),

IV, V,

VI

From any customs port in India to a port in a Foreign Territory

Government of the State in which the port is situated

-

(ii) any rifles or parts of or fittings for rifles are included in good faith for sporting purpose only

(c) III (b),

III(c),

III(d),

IV, V,

VI

From any customs port in India to a Port in the common-wealth

District Magistrate

-

No renewal

XVII

*Subject to the condition (ii) above

18.

Export by land or river

(a) All

To any place outside India

Central Government in the Ministry of Home Affairs or any officer specially empowered for the purpose by the Central Government in the Ministry of Home Affairs

-

No renewal

XVIII

-

(b) III, V, Sulphur Chlorate required for manufacture of matches, Bengal lights and paper caps for toy pistol

Sikkim

Sikkim Police Bhutan,

Commissioner

Representative of India in Bhutan

-

Renewal

*XVII

*To be given only for personal use of the licence in Bhutan

(c) All

To Nepal

*Ambassador of India in Nepal

-

No renewal

XVIII

*Subject to previous sanction of the Central Government in the Ministry of Home Affairs in respect of categories I and II

19.

Export and re-import, transport

and re-export.

(a), I(a), I(b), II

(a) Between one part of India to another

(a) Central Government in the Ministry of Home Affairs

-

No renewal

XIX

-

(b), I (c), I(d), III(b)

(a) Between one part of India to another

(b) Central Government in the Ministry of Home Affairs, or an officer specially empowered for the purpose by the Central Government in the Ministry of Home Affairs

-

No renewal

XIX

-

(c) III (a),

III(c),

III(d),

IV, V,

VI

(a) Between one port of India and another

(c) District Magistrate

-

No renewal

XIX

-

(d), III, IV, V, VI,

(d) From any place in Nepal

(d) Ambassador of India in Nepal

-

No renewal

XIX

-

20.

Transport

I(b), I (c), I(d), III, IV, V, VI

(i) In Jammu & Kashmir

(i) State Government

-

No renewal

XX

-

(ii) In other places Nepal

(ii) District Magistrate

-

No renewal

XX

21.

Import into, possession and transport out of India by His Majesty the King of Nepal, Personnel accompanying him, his brothers, the Prime Minister of Nepal and Nepal Government's forces and Police

*Ambassador of India in Nepal

-

No renewal

XXI

*Subject to confirmation by Central Government in the Ministry of Home Affairs

22.

Import into possession (without use) for the duration of his journey in transport across and export out of India by bona fide travellers of their personal arms and ammunition passing throughout India

I(b), I(c),

I(d), III,

IV, V

-

District Magistrate or an officer specially empowered by the Central Government in the Ministry of Home Affairs or in the case of persons residing in Nepal by the Ambassador of India in Nepal

-

No renewal

XXII

-

23.

Acquiring, possessing during the course of his stay in (but not use) and carrying in, and export out of India by bona fide tourist

III, IV, V

(Country made weapons only)

-

District Magistrate or any officer specially empowered by the State Government

-

Same as licensing authority

XXII

-]

III

FORM I

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

Licence for-

(a)

acquisition, possession/import and transport of firearms or ammunition of categories I(a) and II; and

(b)

import of firearms and ammunition of categories I(b), I(c), I(d).

Name, description and residence of licensee and agent (if any)

Number of packages

Description with specification of calibre of artillery or other articles

Number of articles

Columns to be filled in case of import/transport

Period for which the licence is valid

Use to which the articles are to be put

Place of despatch and route

Place of destination

Name, description and residence of consignee

1

2

3

4

5

6

7

8

9

From.....

To.....

Theof..... 20.....

Date on which a copy is sent to-

(1) The District Magistrate of

.....district.

(2) The Government of the State of Jammu and Kashmir.

The

.....of.....

20.....

(Signature)

Secretary/Joint Secretary to the Government of India,

Ministry of Home Affairs

(SEAL)

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

Signature and designation of renewing authority

Seal

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. It covers only the arms or ammunition specified in columns 2, 3 and 4 and for the purposes shown in column 9.

3. In case of import or transport-

(a)

an account of the contents of each package shall be legibly written thereon;

(b)

bulk shall not be broken before the articles reach the place of destination;

(c)

the articles shall be delivered only to a person lawfully entitled to receive them.

4.

In cases of transport by rail, each package shall be marked with the words "Firearms, Category I" or "Firearms, Category II", as the case may be, in such manner as to be readily recognisable by the Railway authorities.

5. In the case of possession, the licensee shall-

(a)

on demand by an authorised officer produce the arms possessed under this licence;

(b)

not sell or transfer any arms or ammunition or any part thereof covered by this licence to any person not lawfully entitled to possess them;

(c)

forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by this licence; and

(d)

give prior intimation to the licensing authority concerned of his intention to break up or dispose of any firearms or ammunition or any part thereof (otherwise than as mentioned in the note below); failing which, proof of the articles having been broken up or disposed of, will have to be furnished to the satisfaction of the licensing authority.

6. The authority granting or renewing the licence has the right to enquire at any time during the currency of the licence whether the weapon for which it has been granted is still in the possession of the licensee and may require the production of the weapon for the purpose of such an enquiry.

Note. - Licensees are warned that in case they sell or transfer any arms or ammunition covered by the licences possessed by them to any person they shall forthwith inform in writing the District Magistrate having jurisdiction or the

officer-in-charge of the nearest police-station, of such sale or transfer together with the particulars of the firearms and ammunition and the person to whom they have been sold or transferred (section 5 of the Arms Act, 1959). Failure to give such information is punishable with imprisonment for a term which may extend to six months or with fine, which may extend to Rs. 500, or with both [section 25(3) of the Act.

FORM 11

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR ACQUISITION AND POSSESSION OF ARMS OR AMMUNITION OF CATEGORIES III(b), III (c), III(d), V OR VI

Name, description and residence of licence and agent (if any)

Number and description of arms

Ammunition

Place (with description) where articles are to be kept

Period for which the licence is valid

Description

Quantity

1

2

3

4

5

6

Theof.....20.....(Seal).....

(Signature)

Licensing Authority

Designation

.....

Place

..

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

Signature and designation of renewing authority

Seal

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. It covers only the arms or ammunition specified in columns 2, 3 and 4 so long as they are kept in the place described in column 5, but does not authorise the licensee-

(i)

to carry arms;

(ii)

to keep Government arms or ammunition.

Explanation. - For the purposes of this condition-

(a)

"Government arms" means a firearm or other weapon which is the property of Government; and

(b)

"Government ammunition" means ammunition manufactured in any Government factory or prepared for and supplied to Government other than such ammunition as may be released by Government for civilian use.

3. Condition 2(ii) may be cancelled by the authority granting the licence if empowered to do so by the Central Government, and an endorsement added showing the Government arms or ammunition which the licensee is authorised to possess.

4. The licensee shall-

(a)

on demand by an authorised officer produce the arms possessed under this licence;

(b)

not sell or transfer any arms or ammunition or any part thereof covered by this licence to any person not lawfully entitled to possess them;

(c)

forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by this licence; and

(d)

give prior intimation to the licensing authority concerned of his intention to break up or dispose of any firearms or ammunition or any part thereof (otherwise than as mentioned in the note below); failing which, proof of the articles having been broken up or disposed of, will have to be furnished to the satisfaction of the licensing authority.

5. The authority granting or renewing the licence has the right to enquire at any time during the currency of the licence, whether the weapon for which it has been granted is still in the possession of the licensee, and may require the production of the weapon for the purpose of such an enquiry.

6. Where a licence in this Form is granted for the possession of potassium chlorate by an educational institution, the following further conditions shall apply:-

(a)

The quantity of chlorate stored should be the minimum required for laboratory purposes as certified by the head of the institution to the licensing authority.

(b)

The stock of chlorate possessed should be kept in a well-made cupboard or almirah under lock and key under the control and supervision of a responsible member of the staff and the place where the chemicals are kept should be adequately secured.

(c)

Accounts of issues and balances of chlorate possessed should be kept and checked with the actual stock at frequent intervals by a responsible member of the staff. The account book should be available for inspection on demand by any Magistrate or any police officer of a rank not below that of Inspector.

7. Chlorates shall be kept in a building constructed of unflammable material only and separated from any dwelling-house, other building, highway, street, public thoroughfare or public place by a distance not less than 100 feet: Provided that where the total quantity stored does not exceed 100 kg. chlorates may be kept exclusively in a closed and secured receptacle place in a building used for the keeping of other articles not being of an explosive or highly inflammable nature.

8. Sulphur shall not be kept in the same room with saltpetre in the premises specified in column 5:

Provided that where the quantity of each does not exceed 100 kg. sulphur and saltpetre can be kept in separate closed receptacles in the same room.

9. No person shall smoke and no open fires shall be allowed at any time in the premises specified in column 5, or in the vicinity of the receptacle mentioned in provisos to conditions 7 and 8.

10. Where any building used for storage of such materials is fitted with electric lighting or power, the licensee shall get these installations tested at least once a year or once during the currency of the licence by an Electrical Inspector appointed under the Indian Electricity Act, 1910 [for if these installations are in Sikkim by an authority notified in this behalf by the State Government of Sikkim], to ensure that there is no danger of the fire or sparking.

[Inserted by G.S.R. 1462 (E), dated 21-7-1976.]

11. Any accident, fire or explosion occurring within the premises specified in column 5 which is attended with loss of human life or serious injury to person or property shall be reported at once by the licensee to the officer in charge of the nearest police station having jurisdiction over the premises as well as to the Inspector of Explosives of the circle concerned.

Note. - Licensees are warned that in case they sell or transfer any arms or ammunition covered by the licences possessed by them to any person, they shall forthwith inform in writing the District Magistrate having jurisdiction or the officer in charge of the nearest police station of such sale or transfer together with the particulars of the firearms and

ammunition and the person to whom they have been sold or transferred (section 5 of the Arms Act, 1959). Failure to give such information is punishable with imprisonment for a term which may extend to six months or with fine, which may extend to Rs. 500, or with both [section 25(3) of the Act].

[FORM III]

[Substituted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR THE ACQUISITION, POSSESSION AND CARRYING OF ARMS OR AMMUNITION FOR SPORT/PROTECTION/DISPLAY

I. The fees payable in respect of the initial grant and each subsequent year of grant or renewal of licences in this Form shall be at the rates as shown against Sl. No. 3 under Schedule IV.

II. The reduced fees for renewal will ordinarily be available only if application for renewal is made within one month after the date of expiry of the licence and if application is not made within that period, the licensing authority may in his discretion, levy-

(a)

full fee as for initial grant of the licence; and

(b)

if he is satisfied that the delay is not justifiable or excusable, not serious enough to warrant revocation of the licence or prosecution of the licensees, a late fee not exceeding the amount of the licence fee, if fee is charged, or Rs. 100 in other cases, unless he considers it not necessary to renew the licence.

III. Where a licence in this Form is granted or renewed for a period exceeding one year, the fee shall be calculated at the rates prescribed against Sl. No. 3 under Schedule IV, fractions of a year being reckoned as one whole year for the purpose:

(i)

Provided that the fee shall -

(a)

The actual rates prescribed against Sl. No. 3 under Schedule IV for initial grant in respect of the first year; and

(b)

The annual rate prescribed against Sl. No. 3 under Schedule IV for renewal in respect of each year or part thereof beyond the first year.

Serial No. of licence

Name, description and residence of licensee

Arms and ammunition that licensee is entitled to possess

Name,[parent name]

[Substituted by G.S.R. 99, dated 14-5-1998 (w.e.f. 23-5-1998).]

[Substituted by G.S.R. 99, dated 14-5-1998 (w.e.f. 23-5-1998).]

and address of retainer (if any) covered by the licence

Arms of ammunition that retainer is entitled to possess

Area within which the licence is valid

**Date on which licence expires

Date on which the licence or the arms or both shall be produced for inspection before licensing authority under rule 52(2)

Brief description of each weapon with details, e.g., identification marks, register number, etc.

Quantity & description of each kind of ammunition

Arms

Ammunition

To be possessed at any one time

Purchase-able during the year

1

2

3

4

5

6

7

8

9

10

11

The

of

.20

Name (in capitals)/Signature of the Licensing Authority

..

Designation

..

Place

Or

Signature of the officer specially empowered to sign the licence under rule 4

Designation

...

(SEAL)

Place

*The inappropriate term(s) should be deleted. The word "TOURIST" shall be stamped across a licence issued under Entry 3(c)(c) of Schedule II.

**Provided that where a licence is granted in Form III, IV, V or VI for the possession of arms to be acquired by the licensee subsequent to the grant of the licence, the authority granting the licence shall at the time of granting the same, direct that within a period specified by him in this behalf which he may from time to time extend, the arms covered by the licence shall be acquired and that the licence or the arms or both shall be produced for his inspection, and if within the period so specified or extended the licensee fails to acquire the arms and to produce the licence or the arms or both, as the case may be, the licence shall cease to be in force.

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

Name (in capitals)/Signature and designation of the renewing authority

Signature and designation of the officer specially empowered to sign the licence under rule 4

SEAL

CONDITIONS

1. This licence is granted subjected to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. It covers only the person named, and the arms or ammunition described therein and such retainers (if any) as may be entered in column 6:

Provided that if the licensee is a recognised shikar agent in possession of a certificate to that effect from the Central Government he shall be able to lend his weapons covered by his licence for use by any foreign tourist accompanying him and in possession of a shooting licence under the local games rules, valid for the area where shooting by the latter is intended:

Provided further that the licensee shall be able to lend his weapon temporarily for a period not exceeding a fortnight for the purpose of sport only to a person lawfully entitled to possess such type of weapon and subject to the conditions that-

(a)

the weapon is used by the borrower in the presence of the licence-holder or under his written authority, which shall show the number and other identification marks of the weapon and the period for which it is lent;

(b)

in the event of the weapon being misused by, or stolen or lost due to the gross negligence of, the borrower, the licence thereof shall be liable to be revoked; and

(c)

the borrower shall, on demand, produce proof of such lending.

3. If the licensee is a bona fide foreign tourist, the word "TOURIST" shall be stamped on his licence by the licensing authority.

4. This licence is valid to the extent specified in column 9 subject, in the case of a licence having effect in any area outside the State in which it is granted or renewed, to any restrictions which may be imposed in such area by any general or special order of the Central Government.

5. The licensee or any retainer acting under this licence shall not carry any arms covered thereby otherwise than in a good faith for the purpose of sport/protection/display and, save where he is specially authorised in this behalf by the District Magistrate concerned, he shall not take any such arms to a fair, religious procession or other public assemblage (or within the campus or precincts of any educational institution).

6. The licensee, at the time of purchasing any arms or ammunition shall cause the following particulars to be endorsed upon his licence under the vendor's signature, namely-

- (a) the name, description and residence of the person, who takes delivery of the articles purchased;
- (b) the nature and quantity of the articles purchased; and
- (c) the date of purchase,

and if the arms or ammunition are purchased from any person other than a licensed dealer, shall also cause the particulars specified in clauses (b) and (c) to be furnished in writing to the authority who granted this licence within such period as may be prescribed for this purpose by such authority. No purchase of ammunition shall, however, be permitted except on a written certificate from the licensee certifying that with the amount proposed to be purchased, the total quantity of ammunition in his possession will not exceed the maximum which he is entitled to possess at any one time, or his total allowance for the year.

7. He shall not purchase ammunition of any kind in excess of the maximum which may from time to time be fixed by the Central Government. Such maximum may be prescribed both for the amount purchasable in a calendar year and for the amount that may be possessed at any one time. If, however, a licensee exhausts the total quantity of ammunition purchasable in a year earlier than the close of the year, he may for good and sufficient reason be given a temporary increase in the total quantity purchasable at the discretion of the licensing authority.

8. He shall not possess Government arms and ammunition.

Explanation. - For the purposes of this condition-

- (a) "Government arms" means a firearm or other weapon which is the property of the Government; and
- (b) "Government ammunition" means ammunition manufactured in any Government factory, or prepared for and supplied to Government other than such ammunition as may be released by Government for civilian use.

9. The licensee shall-

- (a) on demand by an authorised officer produce the arms possessed under this licence;
- (b) not sell or transfer any arms or ammunition or any part thereof covered by this licence to any person not lawfully entitled to possess them;
- (c) forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by this licence; and
- (d) give prior intimation to the licensing authority concerned of his intention to break up or dispose of any firearms or ammunition or any part thereof (otherwise than as mentioned in the note below); failing which, proof of the articles having been broken up or disposed of, will have to be furnished to the satisfaction of the licensing authority.

10. Condition 8 may be cancelled by the authority granting the licence if empowered to do so by the Central Government, and an endorsement added showing the Government arms or ammunition which the licensee is authorised

to possess.

11. Where the licence is granted for the purpose of sport, the licensee or any retainer or any foreign tourist or other person referred to in the proviso to condition 2 or any other person using the weapon under the licence shall observe such close season as may be prescribed by the State Government concerned in respect of the game-birds and animals.

12.

(a) The licensee may, at his option, apply to the nearest licensing authority having jurisdiction for the renewal of the licence as and when it becomes necessary.

(b)

If a person who holds a licence in Form III changes his place of residence, permanently or temporarily, for more than thirty consecutive days and carries with him the weapon covered by the licence, to a place other than that indicated in column 2 of the licence, he shall, (within thirty days of such change), send intimation about such change to the licensing authority of the place of his new residence as well as to the authority which granted the licence or last renewed it, as the case may be, and shall, on demand forthwith produce the licence and the weapon to the first mentioned authority for making necessary entry in the licence to indicate therein the particulars of the new residence of the licensee.

13. Without prejudice to the voidance of this licence for breach of any of the foregoing conditions, it shall be void if-

(a)

the licensee dies, or

(b)

any weapon covered thereby-

(i)

is sold, or transferred, or

(ii)

is attached in execution of a decree:

Provided that where a weapon is sold or transferred, the licensing authority may permit the holder of the licence to acquire a fresh weapon of the same description within such period as may be specified by him in this behalf and subject to-

(a)

the production of the weapon so acquired or the licence or both before the aforesaid licensing authority for inspection as required under sub-rule (2) of rule 52, and

(b)

the payment of the prescribed licence fee in respect of the weapon so acquired.

14. The authority granting or renewing the licence has the right to enquire at any time during the currency of the licence, whether the weapon or weapons for which it has been granted is or are still in the possession of the licensee, and to require its or their production for the purpose of such enquiry.

Note 1. - Any breach of the conditions of this licence is punishable with imprisonment for a term which may extend to six months or with fine which may extend to Rs. 2,000, or with both [section 30 of the Act].

Note 2. - Licensees are warned that in case they sell or transfer any arms or ammunition covered by the licences possessed by them to any person, they shall forthwith inform in writing to the District Magistrate having jurisdiction or the officer in charge of the nearest police station of such sale or transfer, together with the particulars of the firearms and ammunition and the person to whom they have been sold or transferred (section 5 of the Arms Act, 1959). Failure to give such information is punishable with imprisonment for a term which may extend to six months, or with fine which may extend to Rs. 500, or with both [section 25(3) of the Act].

FORM III-A

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR POSSESSION AND CARRYING BY A RETAINER OF ARMS OR AMMUNITION FOR THE PURPOSE OF SPORT/PROTECTION/DISPLAY

Sl. No. Licence

Name, description and residence of person exempted under Section 41, who has nominated the licensee

Name and residence of licensee

[Name and residence of parent of licensee]

[Substituted by G.S.R. 99, dated 14-5-1998 (w.e.f. 23-5-1998).]

Arms of ammunition that licensee is entitled to possess and carry

Area of validity of licence, i.e., throughout India, State or District

Date on which licence expires or the date on which the person specified in column 2 ceases to be exempted under Section 41, whichever is earlier

Brief description of each weapon with details, e.g., identification marks, register number, etc

Quantity & description of each kind of ammunition

1

2

3

4

5

6

7

8

[Name (in capitals)/Signature of the Licensing Authority

..

[Substituted by G.S.R. 1011(A), dated 7-8-1972.]

Designation

..

Place

.

The

.

of

.20

(SEAL)

.

Or

Signature of the officer specially empowered to sign the licence under rule 4

Designation

Place

]

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

[Name (in capitals)/Signature and designation of the renewing authority]

[Substituted by G.S.R. 1011(A), dated 7-8-1972.]

[Signature and designation of the officer specially empowered to sign the licence under rule 4]

[Added by G.S.R. 1011(A), dated 7-8-1972.]

SEAL

1

2

3

4

5

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. It covers only the person named in column 3 of this licence and the arms or ammunition described in columns 5 and 6.

3. This licence is valid to the extent specified in column 7, subject, in the case of a licence having effect in an area

outside the State in which it is granted or renewed, to any restrictions which may be imposed in such area by any general or special order of the Central Government.

[3-A. A licensee having an arms licence valid throughout India, who carries the licensed weapon or weapons to any place outside the State where he normally resides, shall, within 48 hours of his arrival at such place, intimate in writing to the officer in charge of the police station or the Superintendent of Police having jurisdiction over that place the fact of his arrival at that place and the particulars of any such weapon.]

[Substituted by G.S.R. 404 (E)< dated 28-3-1990.]

4. This licence shall only be granted to a person nominated in that behalf and certified to be his own retainer by a person exempted under section 41 of the Act, and it shall only be granted in respect of the arms or ammunition specified in this behalf by, and being the property of, such exempted person.

5. The grant/renewal of this licence is subject to the condition that it shall expire on the date on which the person specified in column 2 of this licence ceases to be exempted under section 41 of the Act where such date is earlier than the date on which it would otherwise expire in the normal course.

6. The licensee shall not carry any arms covered by this licence otherwise than in good faith for the purpose of sport/protection/display and, save where he is specially authorised in this behalf by the District Magistrate concerned, he shall not take any such arms to a fair, religious procession or other public assemblage [or within the campus or precincts of any educational institution].

[Inserted by G.S.R. 1259, dated 27-11-1980.]

7. The authority granting or renewing the licence has the right to enquire at any time during the currency of the licence, whether the weapon for which it has been granted is still in the possession of the licensee and to require its production for the purposes of such enquiry.

Note. - Any breach of the condition of this licence is punishable with imprisonment for a term which may extend to six months, or with fine which may extend to Rs. 2,000, or with both [section 30 of the Act].

FORM III-B

PERMIT

Shri..... son of village/town district is hereby appointed to be an armed retainer of the companyentitling him to possess, carry and use, for all lawful orders, issued by me as a representative of the company, the following arms or ammunition covered by the said licence:-

Arms

Ammunition

Shrimust carry this permit with him when carrying the arms or ammunition; he shall not carry the arms or ammunition to an area not covered by the licence.

Signature

.....

Holder of licence No.....

Designation and full address of the Company

Valid for the period.....

.....

Signature or Thumb-impression and identification marks of the retainer.

FORM IV

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR ACQUISITION/POSSESSION AND CARRYING OF ARMS OR AMMUNITION FOR DESTRUCTION OF WILD ANIMALS WHICH DO INJURY TO HUMAN BEINGS OR CATTLE

Name, description and residence of licensee

Arms and ammunition

Place or area for which the licence is granted

Specification of the wild beasts which are permitted to be destroyed under this licence

*Period for which the licence is valid

Title and residence of Magistrate to whom licence and weapon must be shown between the 15th November and the 31st December of each year

Date on which the licence or the arms or both shall be produced for inspection before the licensing authority under rule 52(2)

Brief description of each weapon with details, e.g., registered No. and identification marks

Quantity & description of each kind of ammunition

Maximum to be possessed at any one time

Maximum purchasable during the year

1

2

3

4

5

6

7

8

9

The

.....of.....20.....(Seal).....

(Signature)

Licensing Authority

Designation

.....

Place

..

*Provided that where a licence is granted in Form III, IV, V or VI for the possession of arms to be acquired by the licensee subsequent to the grant of the licence, the authority granting the licence shall at the time of granting the same direct that within a period specified by him in this behalf, which he may from time to time extend, the arms covered by the licence shall be acquired and that the licence or the arms or both shall be produced for his inspection and if within the period so specified or extended the licensee fails to acquire the arms and to produce the licence or the arms or both as the case may be, the licence shall cease to be in force on the expiry of such period.

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewal of licence expires

Name (in capital)/Signature and designation of renewing authority

Seal

1

2

3

4

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. Once every year, between the 15th November and 31st December, the licensee shall produce this licence and every weapon covered thereby before the Magistrate referred to in column 8.

3. He shall not keep Government arms or ammunition.

Explanation. - For the purposes of this condition-

(a)

"Government arms" means a firearm or other weapon which is property of the Government; and

(b)

"Government ammunition" means ammunition manufactured in any Government factory, or prepared for and supplied to Government, other than such ammunition as may be released by Government for civilian use.

4. He shall not carry any arms covered by this licence otherwise than in good faith for the destruction of wild animals which do injury to human beings or cattle, nor shall he take any such arms to a fair, religious procession or other public

assemblage or to any considerable distance beyond the place or area entered in column 5:

[Provided that save where he is specially authorised in this behalf by the District Magistrate concerned, the licensee shall not carry arms covered by the licence within the campus or precincts of any educational institution.]

[Inserted by G.S.R. 1259, dated 27-11-1980.]

5. Condition 3 may be cancelled by the authority granting the licence if empowered to do so by the Central Government and an endorsement added showing the Government arms or ammunition which the licensee is entitled to possess.

6. He shall not purchase or possess ammunition of any kind in excess of the maximum allowed under columns 3 and 4 of the licence or of the maximum which may from time to time be fixed by the Central Government for the amount purchasable in a year and for the amount that may be possessed at any one time.

7. At the time of purchasing any arms or ammunition, he shall cause the following particulars to be endorsed upon his licence under the vendor's signature, namely-

- (a)
the name, description and residence of the person who takes delivery of the articles purchased;
- (b)
the nature and quantity of the articles purchased; and
- (c)
the date of purchase,

and if the arms or ammunition are purchased from any person other than a licensed dealer, he shall also cause the particulars specified in clauses (b) and (c) to be furnished in writing to the authority who granted this licence within such period as may be prescribed for this purpose by such authority. No purchase of ammunition shall, however, be permitted except on a written certificate from the licensee certifying that with the amount proposed to be purchased the total quantity of ammunition in his possession will not exceed the maximum which he is entitled to possess at any one time, or his total allowance for the year.

8. Without prejudice to the voidance of this licence for breach of any of the foregoing conditions, it shall be void, if-

- (a)
the licensee dies, or
- (b)
any weapon covered thereby-
- (i)
is sold or transferred, or
- (ii)
is attached in execution of a decree:

[Provided that where a weapon is sold or transferred, the licensing authority may permit the holder of the licence to acquire a fresh weapon of the same description within such period as may be specified by him in this behalf and subject to-

[Inserted by G.S.R. 9, dated 14-12-1968.]

- (a)
the production of the weapon so acquired or the licence or both before the aforesaid licensing authority for inspection as required under sub-rule (2) of rule 52, and
- (b)
the payment of the prescribed licence fee in respect of the weapon so acquired.]

9. The authority granting or renewing the licence has the right to enquire at any time during the currency of the licence whether any weapon for which it has been granted is still in the possession of the licensee and to require the production of the weapons for the purposes of such enquiry.

10. The licensee shall-

- (a)
on demand by the licensing authority or authorised officer produce the weapon covered by this licence;
- (b)
not sell or transfer any arms or ammunition or any part thereof covered by this licence to any person not fully entitled to possess them;
- (c)

forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by this licence; and

(d)

give prior intimation to the licensing authority concern of his intention to break up or dispose of any arms or ammunition or any part thereof (otherwise than as mentioned) in note below; failing which, proof of the articles having been broken up or disposed of, will have to be furnished to the satisfaction of the licensing authority.

Note 1 - Any breach of the conditions of this licence is punishable with imprisonment for a term which may extend to six months or with fine which may extend to Rs. 2,000, or with both [section 30 of the Act].

Note 2. - Licensees are warned that in case they sell or transfer any arms or ammunition covered by the licences possessed by them to any person, they shall forthwith inform in writing the District Magistrate having jurisdiction or the officer in charge of the nearest police station, of such sale or transfer, together with the particulars of the firearms and ammunition and the person to whom they have been sold or transferred (section 5 of the Arms Act, 1959). Failure to give such information is punishable with imprisonment for a term which may extend to six months, or with fine which may extend to Rs. 500, or with both [section 25(3) of the Act.]

FORM V

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998.)

LICENCE FOR THE ACQUISITION/POSSESSION AND CARRYING OF ARMS OR AMMUNITION FOR THE PROTECTION OF CROPS OR CATTLE

Name, description and residence of licensee

Name and description of any member of the licensee's family or servant employed to watch crops, or cattle, residing with him, by whom the arms or ammunition covered by this licence may also be used

Arms and ammunition

Place or area within which the licence is valid

*Period for which the licence is valid

Date on which the licence or the arms or both shall be produced for inspection before the licensing authority under rule 52(2)

Brief description of each weapon with details, e.g., registered No. and other identification marks

Quantity & description of each kind of ammunition

Maximum to be possessed at any one time

Maximum purchasable during the year

1

2

3

4

5

6

7

8

The

.....of.....20.....(Seal).....

(Signature)

LicensingAuthority

.....

Designation

.....

Place

..

*Provided that where a licence is granted in Form III, Form IV, Form V or Form VI for the possession of arms to be acquired by the licensee subsequent to the grant of the licence, the authority granting the licence shall at the time of granting the same direct that within a period specified by him in this behalf, which may be extended from time to time,

the arms covered by the licence shall be acquired and that the licence or the arms or both shall be produced for inspection, and if within the period so specified or extended the licensee fails to acquire the arms and to produce the licence or the arms or both, as the case may be, the licence shall cease to be in force.

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewal of licence expires

Signature and designation of renewing authority

Seal

1

2

3

4

CONDITIONS

1. [The licence is granted subject to-

(a)

the provisions of the Arms Act, 1959 and of the Arms Rules, 1962, and

(b)

the provisions of sections 11 and 39 of the Wild Life (Protection) Act, 1972, or other relevant sections, as the case may be, in respect of the States and Union Territories where the said Act is applicable.]

2. The licensee shall not carry any arms covered by this licence otherwise than in good faith for the destruction of wild animals which do injury to crops or cattle, nor shall he take any such arms to a fair, religious procession or other public assemblage or any considerable distance beyond the place or area entered in column 6:

[Provided that save where he is specially authorised in this behalf by the District Magistrate concerned, the licensee shall not carry arms covered by the licence within the campus or precincts of any educational institution.]

[Inserted by G.S.R. 1259, dated 27-11-1980.]

3. He shall not lend any arms or ammunition covered by this licence to any person, other than a member of his family or servant who may be employed by the licensee to protect the crops or cattle situated in the area specified in the licence and who is mentioned in column 2 of the licence.

4. The licensee shall-

(a)

on demand by an authorised officer produce the weapons covered by this licence;

(b)

not sell or transfer any arms or ammunition or any part thereof covered by this licence to any person not lawfully entitled to possess them;

(c)

forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by his licence; and

(d)

give prior intimation to the licensing authority concerned of his intention to break up or dispose of any arms or ammunition or any part thereof [otherwise than as mentioned in (b) above]; failing which, proof of the articles having been broken up or disposed of, will have to be furnished to the satisfaction of the licensing authority.

5. He shall not keep Government arms or ammunition.

Explanation. - For the purposes of this condition-

(a)

"Government arms" means a firearm or other weapon which is the property of the Government; and

(b)

"Government ammunition" means ammunition manufactured in any Government factory, or prepared for and supplied to Government other than such ammunition as may be released by Government for civilian use.

6. Condition 5 may be cancelled by the authority granting the licence if empowered to do so by the Central Government, and an endorsement added showing the Government arms and ammunition which the licensee is entitled to possess.

7. He shall not purchase or possess ammunition of any kind in excess of the maximum allowed under columns 3 and 4

of the licence or of the maximum which may from time to time be fixed by the Central Government for the amount purchasable in a year and for the amount that may be possessed at any one time.

8. At the time of purchasing any arms or ammunition, he shall cause the following particulars to be endorsed upon his licence under the vendor's signature, namely-

- (a)
the name, description and residence of the person who takes delivery of the articles purchased;
- (b)
the nature and quantity of the articles purchased; and
- (c)
the date of purchase,

and if the arms or ammunition are purchased from any person other than a licensed dealer, he shall also cause the particulars specified in clauses (b) and (c) to be furnished in writing to the authority who granted this licence within such period as may be prescribed for this purpose by such authority. No purchase of ammunition shall, however, be permitted except on a written certificate from the licensee certifying that with the amount proposed to be purchased the total quantity of ammunition in his possession will not exceed the maximum which he is entitled to possess at any one time, or his total allowance for the year.

9. Without prejudice to the voidance of this licence for breach of any of the foregoing conditions, it shall be void if-

- (a)
the licensee dies, or
- (b)
any weapon covered thereby-
- (i)
is sold or transferred, or
- (ii)
is attached in execution of a decree:

[Provided that where a weapon is sold or transferred, the licensing authority may permit the holder of the licence to acquire a fresh weapon of the same description within such period as may be specified by him in this behalf and subject to-

[Inserted by G.S.R. 4, dated 19-12-1968.]

- (a)
the production of the weapon so acquired or the licence or both before the aforesaid licensing authority for inspection as required under sub-rule (2) of rule 52, and
- (b)
the payment of the prescribed licence fee in respect of the weapon so acquired.]

10. The authority granting or renewing the licence has the right to enquiry at any time during the currency of the licence, whether any weapon for which it has been granted is still in the possession of the licensee and to require the production of the weapons for the purpose of such enquiry.

11. Where, after the end of any harvest season, the State Government considers it expedient that for the protection of wild life in any area, any firearm or ammunition licensed in this Form should be deposited in a police station or with a licensed dealer, it may, by order, require any licensee to do deposit such firearms or ammunition for such period as the arm are not required for protection of crops or cattle and as may be specified therein, and thereupon the licensee shall be bound to comply with such order.

Note 1. - Any breach of the condition of this licence is punishable with imprisonment for a term which may extend to six months, or with fine which may extend to Rs. 2,000, or with both [section 30 of the Act].

Note 2. - Licensee are warned that in case they sell or transfer any arms or ammunition covered by the licences possessed by them to any person they shall forthwith inform in writing the District Magistrate having jurisdiction or the officer in charge of the nearest police station, of such sale or transfer, together with the particulars of the firearms and ammunition and the person to whom they have been sold or transferred [section 5 of the Arms Act, 1959]. Failure to give such information is punishable with imprisonment for a term which may extend to six months, or with fine which may extend to Rs. 500, or with both, [section 25(3) of the Act]

[Substituted by G.S.R. 4, dated 19-12-1968. </P>]

FORM VI

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR ACQUISITION, POSSESSION AND USE FOR THE PURPOSE OF TARGET PRACTICE OF FIRE-ARMS OR AMMUNITION

Sl. No. of Licence

Name, description and location of mess, club or association

Arms and ammunition that licensee is entitled to possess

Place within which the licence is valid

*Date on which licence expires

Date on which the licence or the arms or both shall be produced for inspection before the licensing authority under rule 52(2)

Maximum to be possessed at any one time

Maximum purchasable during the year

1

2

3

4

5

6

7

The

of

.20

(SEAL)

[Name (in capitals)]

[Substituted by G.S.R. 1011(A), dated 7-8-1972.]

/Signature of the Licensing Authority

..

Designation

..

or

Signature of the officer specially empowered to sign the licence under rule 4

Designation

Place

.

*Provided that where a licence is granted in Form III, IV, V or VI for the possession of arms to be acquired by the licensee subsequent to the grant of the licence, the authority granting the licence shall at the time of granting the same direct that within a period specified by him in this behalf, which he may from time to time extend, the arms covered by the licence shall be acquired and that the licence or the arms or both shall be produced for his inspection, and if within the period so specified or extended the licensee fails to acquire the arms and to produce the licence or the arms or both, as the case may be, the licence shall cease to be in force.

FORM OF RENEWAL OF THE LICENCE

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

[Name (in capitals)/Signature and designation of the renewing authority]

[Signature and designation of the officer specially empowered to sign the licence under rule 4]

SEAL

1

2
3
4
5

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. It covers only the mess, club or association named and the arms and ammunition described therein.

[2-A. Save where he is specially authorised in this behalf by the District Magistrate concerned, the licensee shall not carry any arms covered by the licence within the campus or precincts of any educational institution].

[Inserted by G.S.R. 1259, dated 13-12-1980]

3. The licensee shall, at the time of purchasing arms or ammunition, cause the following particulars to be endorsed upon his licence under the vendor's signature, namely:-

(a)

the name, description and residence of the person, who takes delivery of the articles purchased on behalf of the mess, club or association;

(b)

the nature and quantity of the articles purchased; and

(c)

the date of purchase,

and if the arms or ammunition are purchased from any person other than a licensed dealer, shall also cause the particulars specified in clauses (b) and (c) to be furnished, in writing, to the authority who granted this licence within such period as may be prescribed by that authority for this purpose. No purchase of ammunition shall, however, be permitted except on a written certificate from the licensee certifying that with the amount proposed to be purchased, the total quantity of ammunition in his possession will not exceed the maximum which he is entitled to possess at any one time, or his total allowance for the year.

4. The mess, club or association shall not purchase or possess ammunition in excess of the quantities allowed under columns 2 and 4 of the licence or the maximum which may from time to time be fixed by the Central Government for the amount purchaseable in a year and for the amount that may be possessed at any one time.

5. The mess, club or association shall-

(a)

on demand by authorised officer produce the weapons covered by this licence;

(b)

not sell or transfer any arms or ammunition or any part thereof covered by this licence to any person not lawfully entitled to possess them;

(c)

forthwith give information at the nearest police station of the loss theft of any arms or ammunition covered by this licence; and

(d)

give prior intimation to the licensing authority concerned of its intention to break up or dispose of any arms or ammunition or any part thereof (otherwise than as mentioned in note below); failing which, proof the articles having been broken up or disposed of, will have to be furnished to the satisfaction of the licensing authority.

6. The licence does not authorise any member of the mess, club or association to keep Government arms or ammunition.

Explanation. - For the purposes of this condition-

(a)

"Government arms" means a firearm or other weapon which is the property of the Government; and

(b)

"Government ammunition" means ammunition manufactured in a Government factory, or prepared for and supplied to Government, other than such ammunition as released by Government for civilian use.

7. The Central Government or the State Government or in the State of Tamil Nadu, Andhra Pradesh or Kerala, the Board of Revenue, may require any firearms or ammunition possessed by the mess, club or association to be registered

in such manner as the Central Government or the State Government or the Board of Revenue may think fit.

8. The authority granting or renewing the licence has the right to enquire at any time during the currency of the licence whether the weapons for which it has been granted are still in the possession of the mess, club or association and to require the production of such weapons for the purposes of such enquiry.

Note. - Licensees are warned that in case they sell or transfer any arms or ammunition covered by the licences possessed by them to any person they shall forthwith inform in writing to the District Magistrate having jurisdiction or the officer in charge of the nearest police station, of such sale or transfer together with the particulars of the firearms and ammunition and the person to whom they have been sold or transferred [section 5 of the Arms Act, 1959]. Failure to give such informations is punishable with imprisonment for a term which may extend to six months, or with fine, which may extend to Rs. 500, or with both [section 25(3) of the Act].

FORM VII

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR CARRYING ARMS OR AMMUNITION ON A JOURNEY IN OR THROUGHOUT ANY PART OF INDIA

Name, description and residence of the licensee and agent (if any)

Arms and ammunition that licensee is entitled to carry

Retainers (if any covered by the licence)

Place of departure, route and place of destination

Period which the journey is likely to occupy

Period for which the licence is valid

Brief description of each weapon with details, e.g., registered No. and other identification marks

Quantity & description of each kind of ammunition

Name of retainer

[Name of retainer's parent]

[Substituted by G.S.R. 99, dated 14-5-1998 (w.e.f. 23-5-1998).]

Address of retainer

Arms or ammunition that retainer is entitled to carry

Description

Quantity

1

2

3

4

5

6

7

8

9

10

11

From the

..

To the

20

..

The

.....of.....20.....(Seal).....

(Signature)

Licensing Authority

.....

Designation

.....

Place

..

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.
2. It covers only the persons named, and the arms or ammunition described therein and such retainers (if any) as may be entered in column 4.
3. The licensee or any retainer acting under this licence shall not, unless specially empowered in this behalf by the authority granting the licence, carry any arms to a fair, religious procession or other public assemblage, [or within the campus or precincts of any educational institution].
[Inserted by G.S.R. 1259, dated 27-11-1980.]
4. He shall not carry Government arms or ammunition.

Explanation. - For the purposes of this condition-

- (a)
"Government arms" means a firearm of other weapon which is the property of the Government; and
(b)

"Government ammunition" means ammunition manufactured in any Government factory, or prepared for and supplied to the Government other than such ammunition as may be released by Government for civilian use.

5. He shall-

- (a)
on demand by an authorised officer produce the weapons covered by this licence; and
(b)
forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by the licence.

Note 1. - Any breach of the conditions of this licence is punishable with imprisonment for a term which may extend to six months, or with fine which may extend to Rs. 2,000, or with both [section 30 of the Act].

Note 2. - Licensees are warned that in case they sell or transfer any arms or ammunition covered by the licence possessed by them to any person they shall forthwith inform in writing to the District Magistrate having jurisdiction or the officer in charge of the nearest police station, of such sale or transfer, together with the particulars of the arms or ammunition and the person to whom they have been sold or transferred [section 5 of the Arms Act, 1959]. Failure to give such information is punishable with imprisonment for a term which may extend to six months or with fine which may extend to Rs. 500, or with both [section 25(3) of the Act].

FORM VIII

[***]

[Fee and entries thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

TRAVELLER'S (TEMPORARY) LICENCE FOR THE POSSESSION AND CARRYING OF ARMS OR AMMUNITION FOR THE DURATION OF HIS JOURNEY FROM THE PORT OR OTHER PLACE OF HIS ARRIVAL IN INDIA TO THE PLACE OF HIS DESTINATION IN INDIA

Name and description of licensee

Arms and ammunition that licensee is entitled to possess and carry

Place of Destination

Period for which the licence is valid

Brief description of each weapon

Quantity & description of each kind of ammunition

- 1
- 2
- 3
- 4
- 5

Theof..... 20.....

From the

to the

.20

The date on which copy is sent to the District Magistrate of.....district [vide sub-rule (2) of rule 17]

Theof..... 20.....

(Seal)

(Signature)

Licensing Authority

.....

Designation

.....

Place

.

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

Signature and designation of renewing authority

Seal

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. It covers only the person named, and the arms or ammunition described therein.

3. The licensee shall not, unless specially empowered in this behalf by the authority granting the licence, carry arms or ammunition to a fair, religious procession or other public assemblage [or within the campus or precincts of any educational institution.]

[Inserted by G.S.R. 1259, dated 27-11-1980.]

4. He shall not carry Government arms or ammunition.

Explanation. - For the purposes of this condition-

(a)

"Government arms" means a firearm or other weapon which is the property of the Government; and

(b)

"Government ammunition" means ammunition manufactured in any Government factory, or prepared for and supplied to the Government other than such ammunition as may be released by Government for civilian use.

5. Condition 4 may be cancelled by the authority granting the licence if empowered to do so by the Central Government and an endorsement added showing the Government arms or ammunition which the licensee is authorised to possess.

6. He shall-

(a)

on demand by an authorised officer produce the weapons covered by this licence;

(b)

[not sell, or transfer any arms or ammunition or any part thereof covered by this licence to any person not lawfully entitled to possess them; and]

[Substituted by S.O. 1283, dated 3-5-1963.]

(c)

forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by this licence.

7. The licensee shall, on arrival at his destination, forthwith apply to the nearest licensing authority for a licence in Form II or Form III, as the case may be, in respect of the arms or ammunition described herein and shall at the same time deliver this licence in original to that authority.

Note 1. - Any breach of the conditions of this licence is punishable with imprisonment for a term which may extend to six months, or with fine which may extend to Rs. 2,000, or with both [section 30 of the Act].

Note 2. - Licensees are warned that in case they sell or transfer any arms or ammunition covered by the licences possessed by them to any person they shall forthwith inform in writing to the District Magistrate having jurisdiction or the officer in charge of the nearest police station, of such sale or transfer, together with the particulars of the firearms or

ammunition and the person to whom they have been sold or transferred [section 5 of the Arms Act, 1959]. Failure to give such information is punishable with imprisonment for a term which may extend to six months, or with fine which may extend to Rs. 500, or with both [section 25(3) of the Act].

FORM IX

[***]

[Fee and entries relating thereto omitted by G.S.R, 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

Licence to-

(1)

Manufacture,

(2)

Convert, shorten, repair or test (other than proof-test) sell or transfer, keep for sale or transfer, conversion, repair or test of arms or ammunition.

Sl. No. of Licence

Name, description of licensee and of duly authorized agent or agents (if any)

Place of business, factory or shop

Description and number

Description and quantity

Name of range or other place where allowed to test

Date and year on which the licence expires

To be manufactured, converted, shortened, repaired

To be sold or keep for sale

To be manufactured, converted, etc.

To be sold or kept for sale

1

2

3

4

5

6

7

8

9

The 31st December, 20

Theof..... 20.....

The date on which copy is sent to the District Magistrate of.....district [vide sub-rule (2) of rule 17]

Theof..... 20.....

(SEAL)

(Signature)

Licensing Authority

.....

Designation

.....

Place

.

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

Signature and designation of renewing authority

Seal

CONDITIONS

1. (a) This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

(b)

This licence does not entitle the dealer to take any arms or ammunition for testing to a testing range or other place without a permit for the purposes or to prove any firearms.

(c)

This licence is valid only so long as the licensee carries on the trade or business in the premises shown in column 3 thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

(d)

[The licensee shall not enter into any partnership connected with this licence without the approval of the licensing authority].

[Added by G.S.R. 590, dated 8-5-1982.]

2. The licensee shall maintain registers of all arms manufactured or converted or shortened or repaired or tested or transferred, of all ammunition manufactured, converted, repaired or transferred, of all stock in hand and of all sales showing the particulars in such forms as may be prescribed for the purpose by the Central Government.

3. He shall make available for inspection his stock and his registers on the demand of any Magistrate or any police-officer of a rank not below that of Inspector or, if the Central Government so directs, of Sub-Inspector.

4.

(1)

He shall affix on a conspicuous part of his place of business, factory or shop a signboard, on which shall be painted in large letters in English/Hindi and in the languages of the district his name and the words "licensed to manufacture/convert/shorten/repair/test/transfer/sell arms or ammunition".

(2)

He shall also affix in his place of business, factory or shop a copy of section 36 of the Arms Act, 1959, either English/Hindi or in the language of the district.

5. He shall not manufacture firearms of any category or description other than those allowed to be manufactured under column 4, nor expand his business, except with the prior permission of the Central Government and subject to such conditions as may be prescribed by the Central Government.

6. He shall not sell to any one any firearm manufactured by him unless such firearm-

(a)

is duly proof-tested at a Government establishment or an establishment approved in this behalf by the Central Government;

(b)

bears proof-marks; and

(c)

bears identification marks as required by rule 25.

7. He shall not sell any arms or ammunition elsewhere than at the place of business, factory or shop specified in column 3.

8. He shall not keep Government arms or ammunition except under the special or general orders of the Central Government.

Explanation.-For the purposes of this condition-

(a)

"Government arms" means a firearm or other weapon which is the property of the Government; and

(b)

"Government ammunition" means ammunition manufactured in a Government factory or prepared for and supplied to Government other than such ammunition as released by Government for civilian use.

9. He shall, at the time of sale or transfer of any arms or ammunition to a person holding a licence in Form III, Form IV, Form V, Form VII or VIII endorse on the licence,-

(a)

the name, description and residence of the person who takes delivery of the articles sold or transferred,

(b)

the nature and quantity of the articles sold or transferred, and

(c)

the date of sale or transfer, and shall sign the endorsement (and affix his seal).

10. He shall at the time of sale or transfer of a weapon, enter in his register the number and other identification marks, if any, stamped on the weapon at the time of manufacture or otherwise.

11. He shall give information of all sales or transfer of arms and ammunition, to such person and in such manner as the Central Government may direct.

12. He shall not sell or transfer any quantity of ammunition to any person licensed to possess or carry arms or ammunition without his first obtaining a written certificate from such person to the effect that with the quantity of ammunition proposed to be purchased by him, the total quantity of ammunition in his possession will not exceed the maximum quantity which he is entitled to possess at any one time or his total allowance for the year:

Provided that he shall not, in any case, sell or transfer to any person any quantity of ammunition in excess of the maximum which may be fixed by the Central Government for such person or which is endorsed on such person's licence.

13. He shall not sell arms and ammunition to an officer, non-commissioned officer, or soldier of the armed forces of the Union, unless such person produces a written pass or permit signed by his Commanding Officer, and then only to the extent and on the conditions specified in such pass or permit.

14. Where the licence is granted in and for any local area in West Bengal or Assam, the licensee shall not sell arms or ammunition without a special permit from a Magistrate, to any member of a hill-tribe to which the Central Government may, from time to time by notification, apply this condition.

[14-A. Where a licence is granted for conversion of ammunition, it shall not entitle the licensee to convert blank cartridges or any ammunition having no projectile into single/multiple projectile ammunition or to load or re-load any ammunition].

[Inserted by G.S.R. 703, dated 15-7-1980.]

15. The licensee shall not sell or transfer any arms of category V to a person residing in an area to which section 4 applies unless the said person produces a licence, or is exempted from the obligation to take out a licence, acquire, possess or carry such arms in that area.

16. The licensee shall forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by the licence.

17. Chlorates shall be kept in a building constructed of unflammable materials only and separated from any dwelling-house, other building highway, street, public thoroughfare or public place by a distance of not less 10 feet:

Provided that, where the total quantity stored does not exceed 100 kg. may be kept exclusively in a closed and secured receptacle placed in a building used for the keeping of other articles not being of an explosive or highly inflammable nature.

18. Sulphur shall not be kept in the same room with saltpetre in the premises specified in column 3:

Provided that when the quantity of each does not exceed 100 kg., sulphur and saltpetre may be kept in separate closed receptacles in the same room.

19. No person shall smoke and no open fires shall be allowed at any time in the premises specified in column 3, or in the vicinity of the receptacles mentioned in provision to conditions 17 and 18.

20. Where any building used for storage of such material is fitted with electric lighting or power, the licensee shall get these installations tested at least once a year or once during the currency of the licence, by an Electrical Inspector appointed under the Indian Electricity Act, 1910, to ensure that there is no danger of fire or sparking.

21. Any accident, fire or explosion occurring within the premises specified in column 3 which is attended with loss of human life or serious injury to persons or property shall be reported at once by the licensee to the officer in charge of the nearest police station having jurisdiction over the place of his business, factory or shop as well as to the Inspector of Explosives of the circle concerned.

22. [Subject to the other conditions contained herein, no licensee shall, without reasonable cause, refuse to sell arms or ammunition to any person who is entitled to purchase or acquire such arms or ammunition under the provisions of the Arms Act, 1959 or the Arms Rules, 1962.

Explanation. - The possibility or expectation of the seller obtaining a higher price at a later date or the refusal by a person to purchase or acquire arms or ammunition partly of a description demanded by him and partly of a different description suggested by the licensee shall not be deemed to be a reasonable cause for the purpose of this condition.]

[Substituted by G.S.R. 788, dated 16-5-1964.]

23. [The conversion into explosives of sulphur in admixtures with chlorates shall be permitted for the following purposes only (and for no other purposes):-

(i)

in small quantities for scientific purposes;

(ii)

for the purposes of manufacturing heads of matches; or

(iii)

for use in toy amorces (paper caps for toy pistols).]

FORM X

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR PROOF-TEST AND KEEPING FOR PROOF-TEST OF FIREARMS

Serial No. of licence

Name, description and residence of licensee and of duly authorized agent(s) (if any)

Place of business, factory or shop

Categories of firearms allowed to be proof-tested

Range or other place where allowed to test

Date on which the licence expires

1

2

3

4

5

6

The

of

.20

The date on which copy is sent to the District Magistrate of.....district [vide rule 23].

[Signature and designation of the officer specially empowered to sign the licence under rule 4 (vide rule 23).]

[Inserted by G.S.R. 1011(A), DATED 7-8-1972.]

(Signature)

Secretary/Joint Secretary to the Government of India, Ministry of Home Affairs.

The

of

.20

(SEAL)

Date of issue of the licence

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

Signature and designation of renewing authority

Seal

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. The licensee shall carry on the work of proof-testing and stamp proof-marks on the firearms which are proved, in accordance with regulation framed or approved by the Central Government for the purpose.

3. The licence is valid only so long as the licensee carries on the work of proof-test and if the work is discontinued for a continuous period of more than one year, the licence shall ipso facto expire.

4. The licensee shall maintain a register of all firearms received for proving or of those proof-tested, of all stock in hand, of all firearms disposed of after proof-test, showing the particulars in such forms as may be prescribed by the Central Government for the purpose.

5. He shall make available for inspection his stock and his registers on the demand of any Magistrate or any police officer of a rank not below that of Inspector, or if the Central Government so directs, of Sub-Inspector.

6.

(1)

He shall affix on a conspicuous part of his place of business, factory or shop a signboard on which shall be painted in large letters in English/Hindi and in the language of the district his name and the words "licensed to proof-test firearms of categories as shown in column 4 of the licence."

(2)

He shall also affix in his place of business or factory a copy of section 36 of the Arms Act, 1959 either in English/Hindi or in the language of the district.

7. He shall not proof-test firearms elsewhere than at the place of business or factory specified in column 3.

8. The licensee shall forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by the licence.

FORM XI

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

[LICENCE TO [CONVERT FIREARMS]

[Substituted by S.O. 1283 , dated 3-2-1963.]

, REPAIR, TEST (OTHER THAN PROOF-TEST), SELL OR TRANSFER OR KEEP FOR SALE, REPAIR OR TEST, OR TRANSFER ARMS OR AMMUNITION OF CATEGORIES I(b), I(c), I(d), III(a), III(b), III(c), III(d), V AND VI]

[Substituted by S.O. 1283 , dated 3-2-1963.]

Sl. No. of Licence

Name, description and residence of licensee and of duly authorized agent or agents (if any)

Place of business, factory or shop

Description and number of arms

Description and quantity of ammunition

Name of range for other place where allowed to test

Date and year on which the licence expires

To be converted or repaired or

To be sold or kept for sale, etc.

To be converted or repaired

To be sold or kept for sale

1

2

3

4

5

6

7

8

9

The 31st December, 20

[Name (in capital)/Signature of the Licensing Authority

[Substituted by G.S.R. 1011(A), dated 7-8-1972.]

Designation

.

Place

..

..

Theof..... 20.....(SEAL)

Signature of the officer specially empowered to sign the licence under rule 4

Designation

.

Place

..

]

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

[Name (in capitals)/Signature and designation of the renewing authority]

[Added by G.S.R. 1011(A), dated 7-8-1972.]

[Signature and designation of the officer specially empowered to sign the licence under rule 4]

SEAL

1

2

3

4

5

CONDITIONS

1. (a) This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

(b)

This licence entitles the licensee to fabricate components and parts of firearms and ammunition for purposes of [repair of firearms and conversion of repair of]

[Inserted by G.S.R. 703, dated 15-7-1981.]

ammunition of the categories shown in column 4, but does not entitle him to manufacture such components or parts for the purpose of, or utilised for assembling into complete arms or ammunition.

(c)

This licence does not entitle the dealer to take any arms or ammunition to a testing range or other place without a permit for the purpose, or to prove any firearms.

(d)

This licence is valid only so long as he carries on the trade business in the premises shown in column 3 thereof and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

2. The licensee shall maintain registers of all arms and ammunition in stock, and of all sales showing the particulars in such Form as may be prescribed by the Central Government for the purpose.

3. He shall make available for inspection his stock and his registers on the demand of any magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

4.

(1)

He shall affix on a conspicuous part of his place of business, factory or shop a signboard, on which shall be painted in large letters in English/Hindi and in the language of the district his name and the words "licensed to convert/repair/test (other than proof-test/sell/transfer arms and ammunition)"

(2)

He shall also affix in his place of business, factory or shop a copy of section 36 of the Act, either in English/Hindi or in the language of the district.

5. He shall not convert an imitation firearm into a firearm or shorten a firearm on the strength of this licence.

[5-A. Where a licence is granted for conversion of ammunition, it shall not entitle the licensee to convert blank cartridges or any ammunition having no projectile into single/multiple projectile ammunition or to load or re-load any ammunition.]

[Substituted by G.S.R. 1689, dated 9-9-1970.]

6. He shall not sell the arms or ammunition covered by the licence, elsewhere than at the place of business, factory or shop specified in column 3.

7. He shall not keep Government arms or ammunition unless he is specially authorised in this behalf by the Central Government.

Explanation. - For the purposes of this condition-

(a)

"Government arms" means a firearm or other weapon which is the property of the Government; and

(b)

"Government ammunition" means ammunition manufactured in any Government factory or prepared for and supplied to the Government other than such ammunition as may be released by Government for civilian use.

8. He shall, at the time of sale or transfer of any arms or ammunition to a person holding a licence in Form III, Form IV, Form V, Form VII or Form VIII, endorse on the licence-

(a)

the name, description and residence of the person who takes delivery of the articles sold or transferred;

(b)

the nature and quantity of the articles sold or transferred; and

(c)

the date of sale or transfer,

and shall sign the endorsement and affix his seal.

9. He shall at the time of sale or transfer of a weapon enter in his register the number and other identification marks, if any, stamped on the weapon at the time of manufacture or otherwise.

10. He shall give information of all sales or transfer of arms and ammunition, to such person and in such manner as the Central Government may direct.

11. He shall not sell or transfer ammunition to any person, licensed to possess or carry arms without his first obtaining a written certificate from such person to the effect that, with the quantity of ammunition proposed to be acquired by him the total quantity of ammunition in his possession shall not exceed the maximum quantity which he is entitled to possess at any one time of his total allowance for the year:

Provided that he shall not in any case sell or transfer to any person any quantity of ammunition in excess of the maximum which may be fixed by the Central Government for such person or which is endorsed on such person's licence.

12. He shall not sell arms or ammunition to an officer, non-commissioned officer or soldier of the armed forces of the Union unless such person produces a written pass or permit signed by the Commanding Officer, and then only to the extent and on the conditions specified in such pass or permit.

13. Where the licence is granted in and for any local area in West Bengal or Assam, the licensee shall not sell arms or ammunition without a special permit from a Magistrate, to any member of a hill-tribe to which the Central Government may from time to time by notification apply this condition.

14. The licensee shall forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by the licence.

15. [Subject to the other conditions contained herein, no licensee shall, without reasonable cause, refuse to sell arms or ammunition to any person who is entitled to purchase or acquire such arms or ammunition under the provisions of the Arms Act, 1959 or the Arms Rules, 1962.

Explanation. - The possibility or expectation of the seller obtaining a higher price at a later date or the refusal by a person to purchase or acquire arms or ammunition partly of a description demanded by him and partly of a different description suggested by the licensee, shall not be deemed to be a reasonable cause for the purpose of this condition.]

[Inserted by G.S.R. 788, dated 16-5-1964.]

16. [The conversion into explosives of sulphur in admixture with chlorates shall be permitted for the following purposes only (and for no other purposes):-

(i)

in small quantities for scientific purposes;

(ii)

for the purposes of manufacturing heads of matches; or

(iii)

for use in toy amorces (paper caps for toy pistol).]

FORM XII

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE TO SELL, TRANSFER OR TEST (OTHER THAN PROOF-TEST) AND TO KEEP FOR SALE, TRANSFER OR TEST, ARMS OR AMMUNITION OF CATEGORIES I(b), I(c), I(d), III(a), III(c), III(d), AND V

Sl. No. of Licence

Name, description and residence of licensee and of duly authorized agent or agents (if any)

Place of business or shop

Description and number of arms

Description and quantity of ammunition

Name of the range or other place where allowed to test

Date and year on which the licence expires

1

2

3

4

5

6

7

The 31st December, 20

[Name (in capital)/Signature of the Licensing Authority

[Substituted by G.S.R. 1011(A), dated 7-8-1972.]

Designation

.

Place

..

..

Theof..... 20.....(SEAL)

Signature of the officer specially empowered to sign the licence under rule 4

Designation

.

Place

..

..]

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

[Name (in capitals)/Signature and designation of the renewing authority]

[Substituted by G.S.R. 1011(A), dated 7-8-1972.]

[Signature and designation of the officer specially empowered to sign the licence under rule 4]

[Added by G.S.R. 1011(A), dated 7-8-1972.]

SEAL

1

2

3

4

5

CONDITIONS

1. (a) This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

(b)

This licence does not entitle the dealer to take any arms or ammunition for testing to a testing range or other place without a permit for the purpose, or to prove any firearms.

(c)

This licence is valid only so long as he carries on the trade or business in the premises shown in column 3 thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

2. The licensee shall maintain registers of all arms and ammunition in stock, and of all sales showing the particulars in such Forms as may be prescribed by the Central Government for the purpose.

3. He shall make available for inspection his stock and his registers on the demand of any Magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

4.

(1)

He shall affix on a conspicuous part of his place of business, factory or shop a signboard, on which shall be painted in large letters in English/Hindi and in the language of the district his name and the words "licensed to sell, transfer or test (other than proof test) arms and ammunition."

(2)

He shall also affix in his place of business, factory or shop a copy of section 36 of the Arms Act, either in English/Hindi or in the language of the district.

5. He shall not sell the arms or ammunition covered by the licence, elsewhere than at the place of business, factory or shop specified in column 3.

6. He shall not keep Government arms or ammunition unless he is specially authorised in this behalf by the Central Government.

Explanation. - For the purposes of this condition-

(a)

"Government arms" means a firearms or other weapon which is the property of the Government; and

S

(b)

"Government ammunition" means ammunition manufactured in any Government factory, or prepared for and supplied to the Government other than such ammunition as may be released by Government for civilian use.

7. He shall, at the time of sale or transfer of any arms or ammunition to a person holding a licence in Form III, Form IV, Form V, Form VII or Form VIII, endorse on the licence-

(a)

the name, description and residence of the person who takes delivery of the articles sold or transferred;

(b)

the nature and quantity of the articles sold or transferred; and

(c)

the date of sale or transfer.

8. He shall, at the time of sale or transfer of a weapon, enter in his register the number and other identification marks, if any, stamped on the weapon at the time of manufacture or otherwise.

9. He shall give information of all sales or transfers of arms and ammunition to such person and in such manner as the Central Government may direct.

10. He shall not sell or transfer ammunition to any person, licensed to possess or carry arms, without his first obtaining a written certificate from such person to the effect that, with the quantity of ammunition proposed to be acquired by him, the total quantity of ammunition in his possession shall not exceed the maximum quantity which he is entitled to possess at any one time or his total allowance for the year:

Provided that he shall not in, any case sell or transfer to any person any quantity of ammunition in excess of the maximum which may be fixed by the Central Government for such person or which is endorsed on such person's licence.

11. He shall not sell arms and ammunition to an officer, non-commissioned officer or soldier of the armed forces of the Union unless such person produces a written pass or permit signed by the Commanding Officer, and then only to the extent and on the conditions specified in such pass or permit.

12. Where the licence is granted in and for any local area in West Bengal or Assam, the licensee shall not sell arms or ammunition, without a special permit from a Magistrate, to any member of a hill-tribe to which the Central Government may, from time to time by notification, apply this condition.

13. The licensee shall forthwith give information at the nearest police station of the loss or theft of any arms or

ammunition covered by the licence.

14. [Subject to the other conditions contained herein, no licensee shall, without reasonable cause, refuse to sell arms or ammunition to any person who is entitled to purchase or acquire such arms or ammunition under the provisions of the Arms Act, 1959 or the Arms Rules, 1962.

Explanation. - The possibility or expectation of the seller obtaining a higher price at a later date or the refusal by a person to purchase or acquire arms or ammunition partly of a description demanded by him and partly of a different description suggested by the licensee, shall not be deemed to be a reasonable cause for the purpose of this condition.]

[Inserted by G.S.R. 788, dated 16-5-1964.]

FORM XIII

[***]

[Fee and entries thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE TO SELL, TRANSFER OR TEST (OTHER THAN PROOF-TEST) AND TO KEEP FOR SALE, TRANSFER OR TEST, ARMS OR AMMUNITION OF CATEGORIES III(c), III(d), V OR VI

Sl. No. of Licence

Name, description and residence of licensee and of duly authorized agent or agents (if any)

Place of business or shop

Description and number of arms

Description and quantity of ammunition

Name of the range or other place where allowed to test

Date and year on which the licence expires

1

2

3

4

5

6

7

The 31st December, 20

(Signature)

Licensing Authority

.....

Theof..... 20.....(SEAL)

Designation

.....

Place

.

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

[Name (in capitals)/Signature and designation of renewing authority]

[Signature and designation of the officer specially empowered to sign the licence under rule 4]

SEAL

1

2

3

4

5

CONDITIONS

1. (a) This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

(b)

This licence does not entitle the dealer to take any arms or ammunition for testing to a testing range or other place

without a permit for the purpose, or to prove any firearms.

(c)

This licence is valid only so long as he carries on the trade or business in the premises shown in column 3 thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

2. The licensee shall maintain registers of all arms and ammunition in stock and of all sales showing the particulars in such Forms as may be prescribed by the Central Government for the purpose.

3. He shall make available for inspection his stock and his registers on the demand of any Magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

4.

(1)

He shall affix on a conspicuous part of his place of business, factory or shop a signboard, on which shall be painted in large letters in English/Hindu and in the language of the district his name and the words "licensed to sell, transfer or test (other than proof-test arms or ammunition)".

(2)

He shall also affix in his place of business, factory or shop a copy of section 36 of the Arms Act, either in English/Hindi or in the language of the district.

5. He shall not sell the arms or ammunition covered by the licence, elsewhere than the place of business, factory or shop specified in column 3.

6. He shall not keep Government arms or ammunition, except under the special or general orders of the Central Government.

Explanation. - For the purposes of this conditions-

(a)

"Government arms" means a firearm or other weapon which is the property of the Government; and

(b)

"Government ammunition" means ammunition manufactured in any Government factory or prepared for and supplied to Government other than such ammunition as may be released by Government for civilian use.

7. He shall, at the time of sale or transfer of any arms or ammunition to a person holding a licence in Form III, Form IV, Form V, Form VII or Form VIII, endorse on the licence-

(a)

the name, description and residence of the person who takes delivery of the articles sold or transferred;

(b)

the nature and quantity of the articles sold or transferred; and

(c)

the date of the sale or transfer.

8. He shall, at the time of sale or transfer of a weapon, enter in his register the number and other identification marks, if any, stamped on the weapon at the time of manufacture or otherwise.

9. He shall give information of all sales or transfer of arms or ammunition, to such person and in such manner as the Central Government may direct.

10. He shall not sell or transfer ammunition to any person, licensed to possess or carry arms, without his first obtaining a written certificate from such person to the effect that, with the quantity of ammunition proposed to be purchased by him, the total quantity of ammunition in his possession will not exceed the maximum quantity which he is entitled to possess at any one time of his total allowance for the year:

Provided that he shall not in any case sell or transfer to any person any quantity of ammunition in excess of the maximum which may be fixed by the Central Government for such person or which is endorsed on such person's licence.

11. He shall not sell arms or ammunition to an officer, non-commissioned officer or soldier of the armed forces of the Union unless such person produces a written pass or permit signed by the Commanding Officer, and then only to the extent and on the conditions specified in such pass or permit.

12. Where the licence is granted in and for any local area in West Bengal or Assam, the licensee shall not sell arms or ammunition, without a special permit from a Magistrate, to any member of a hill-tribe to which the Central Government may, from time to time by notification apply this condition.

13. The licensee shall not sell or transfer any arms of category V to a person residing in an area to which section 4 applies unless the said person produces a licence, or is exempted from the obligation to take out a licence to acquire, possess or carry such arms in that area.

14. The licensee shall forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by the licence.

15. Chlorates shall be kept in building constructed of unflammable materials only and separated from any dwelling house, other building, highway, street, public thoroughfare or public place by a distance of not less than 10 feet:

Provided that, where the total quantity stored does not exceed 100 kg., chlorates may be kept exclusively in a closed and secured receptacle placed in a building used for the keeping of other articles not being on an explosive or highly inflammable nature.

16. Sulphur shall not be kept in the same room with saltpetre in the premises specified in column 3:

Provided that where the quantity of each does not exceed 100 kg., sulphur and saltpetre can be kept in separate closed receptacles in the same room.

17. No person shall smoke and no open fire shall be allowed at any time in the premises specified in column 3, or in the vicinity of the receptacles mentioned in provisos to conditions 15 and 16.

18. Where any building used for storage of such materials is fitted with electric lighting or power, the licensee shall get these installations tested at least once a year or once during the currency of the licence, by an Electrical Inspector appointed under the Indian Electricity Act, 1910, to ensure that there is no danger of the sparking.

19. Any accident, fire or explosion occurring within the premises specified in column 3 which is attended with loss of human life or serious injury to persons or property shall be reported at once by the licensee to the officer in charge of the nearest police station having jurisdiction over this place of business, factory or shop as well as to the Inspector of Explosives of the circle concerned.

20. [Subject to the other conditions contain herein, no licensee shall, without reasonable cause, refuse to sell arms or ammunition to any person who is entitled to purchase or acquire such arms or ammunition under the provisions of the Arms Act, 1959 or the Arms Rules, 1962.

Explanation. - The possibility or expectation of the seller obtaining a higher price at a later date or the refusal by a person to purchase or acquire arms or ammunition partly of a description demanded by him and partly of different description suggested by the licensee, shall not be deemed to be a reasonable cause for the purpose of this condition.]

[Inserted by G.S.R. 788, dated 16-5-1964.]

FORM XIV

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR THE POSSESSION BY HOLDERS OF LICENCES IN FORM IX, FORM XI, FORM XII OR FORM XIII OF ARMS OR AMMUNITION DEPOSITED BY THEIR OWNERS UNDER SECTION 21 OF THE ACT, OR FOR SAFE KEEPING

Name, description and residence of licensee and of duly authorized agent or agents (if any)

Description of arms and ammunition

Place (with description) where articles are to be kept

Period for which the licence is valid

1

2

3

4

From.....

To.....

(Signature)

The

.....of.....20.....(SEAL)

Licensing Authority

.....

Designation

.....

Place

..

FORM OF RENEWAL OF THE LICENCE

Date and year of renewal

Date on which renewed licence expires

Signature and designation of renewing authority

Seal

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. It covers only the arms or ammunition of the description given in column 2 so long as they are kept in the place described in column 3, but does not authorise the licensee-

(i)

to carry arms or,

(ii)

to kept Government arms or ammunition.

Explanation. - For the purposes of this condition,-

(a)

"Government arms" means a firearm or other weapon which is the property of the Government; and

(b)

"Government ammunition" means ammunition manufactured in Government factory, or prepared for and supplied for civilian use.

3. (a) The licensee shall maintain separate registers of all arms or ammunition deposited with him under this licence,-

(i)

under section 21(1), and

(ii)

for safe custody otherwise than under section 21(2),

showing particulars in such Forms as may be prescribed by the Central Government for the purpose.

(b)

A copy of each of the registers certified by the dealer as a true copy relating to each preceding quarter of a calendar year, shall be forwarded within one week after the expiry of the quarter, to the District Magistrate, the quarters ending on the last day of March, June, September, December.

4. He shall not receive for deposit arms or ammunition without verifying-

(a)

that they are not being deposited with any mala fide intention, and

(b)

in case they are being deposited otherwise than under section 21(1), that they are covered by a valid possession licence or are exempted from the need for such licence.

5. He shall not charge fees for keeping or maintaining the deposited articles in excess of the prescribed rates.

6. He shall not return to the depositor or sell the arms and ammunition deposited except in the manner and to the extent permitted for the sale of arms and ammunition to such depositor/purchaser.

7. On the expiry of the period prescribed for forfeiture of the arms or ammunition deposited, he shall deposit them in the malkhana of the district or such other place as may be specified by the State Government for the purpose.

8. He shall make available for inspection such arms or ammunition and his registers on the demand of any Magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

9. The licensee shall-

(a)

either inform the nearest police station and the District Magistrate personally or despatch informing to the officer in charge of the police station and the District Magistrate concerned by registered post on the day of deposit or return or disposal, as the case may be;

(b)

forthwith inform the police station and the District Magistrate concerned of the loss or theft of any deposited article.

Note. - A licence in this form will be granted for a period ending on the day on which the licensee's licence in Form IX, Form XI, Form XII or Form XIII, as the case may be, is due to expire.

FORM XV

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR IMPORT (BY SEA OR AIR) OF ARMS OR AMMUNITION INTO THE PORT OF.....

Name, description and residence of licensee and agent (if any)

Number of packages

Arms

Ammunition

Purpose for which required

Value of the arms per piece

Place where articles are to be deposited or to which they are to be dispatched

Period for which the licence is valid

Description

No.

Description

Weight in Kg. or number

1

2

3

4

5

6

7

8

9

10

From

..

To

20

..

(Signature)

Theof..... 20.....(SEAL)

Licensing Authority

.....

Designation

.....

Place

..

CONDITIONS

1. The licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. An account of the contents of each package shall be legibly written thereon.

3. The article shall be either-

(a)

deposited-

(i)

in a warehouse appointed under section 15 of the Sea Customs Act, 1878, *

[Now see the Customs Act, 1962.]

or
(ii)
subject to the general or special sanction of the Central Government under section 34 of the Arms Act, 1959, in a warehouse licensed under section 16 of the Sea Customs Act, 1878, *
[Now see the Customs Act, 1962.]
or
(b)
forthwith despatched to their place of destination.
FORM XVI
[***]
[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR IMPORT (BY LAND OR RIVER) OF ARMS OR AMMUNITION

Name, description and residence of licensee and agent (if any)

Number of packages

Arms

Ammunition

Place of despatch and route

Purpose for which required

Place of destination

Name, description and residence of consignee

Period for which the licence is valid

Description

No.

Description

Weight in Kg. or number

1

2

3

4

5

6

7

8

9

10

11

From

to

.

(Signature)

Theof..... 20.....(SEAL)

Licensing Authority

.....

Designation

.....

Place

.

Date on which copy is sent to the Government of the State of [rule 31(1)]

District Magistrate.....[rule 31(1)]

Station Master at the.....[rule 31(2)]

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.
2. The articles shall not be conveyed by any route other than that specified in column 7 and bulk shall not be broken nor shall the consignment be stopped, before the articles reach the place of destination.
3. An account of the contents of each package shall be legibly written thereon; and where the articles are conveyed by rail, each package shall be marked with the words "Arms", "Ammunition", as the case may be, so as to be readily recognised by the railway authorities.

FORM XVII

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE OF EXPORT (BY SEA OR AIR) OF ARMS OR AMMUNITION

From.....To.....

Arms

Ammunition

Name, description and residence of licensee and agent (if any

Number of packages

Description

Number

Description

Weight in Kg. or number

Place of dispatch and route

Purpose for which required

Place of destination

Name, description and residence of consignee

Period for which the licence is valid

1

2

3

4

5

6

7

8

9

10

11

From the

20.....

To the

.....20.....

Theof..... 20.....(SEAL)

(Signature)

Licensing Authority

.....

Designation

.....

Place

.

Theof..... 20.....

Date on which a copy is sent to the.....

Agent or Master of vessel or air carrier at theport (rule 33(1)).

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.
2. The articles shall not be conveyed by any route other than that specified in column 7 and bulk shall not be broken nor shall the consignment be stopped, before the articles reach the place of destination.
3. An account of the contents of each package shall be legibly written thereon; and where the articles are conveyed by rail, each package shall be marked with the words "Arms" or "Ammunition", as the case may be, so as to be readily recognisable by the railway authorities.

FORM XVIII

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR EXPORT (BY LAND OR RIVER) OF ARMS OR AMMUNITION

From.....To.....

Arms

Ammunition

Name, description and residence of licensee and agent (if any

Number of packages

Description

Number

Description

Weight in Kg. or number

Place of dispatch and route

Purpose for which required

Place of destination

Name, description and residence of consignee

Period for which the licence is valid

1

2

3

4

5

6

7

8

9

10

11

From the 20.....

To the 20.....

The

of..... 20.....

Date on which a certificate of "no objection" is obtained fromthe Government of the State of Jammu and Kashmir,

The

of..... 20.....

District Magistrate of the district of.....(vide rule 50) The of 20 Date on which a copy is sent to the District Magistrate of the District/Government of the State of Jammu and Kashmir [vide rule 34(a)].

District Magistrate of

.....district (vide rule 34(b))

(Signature)

Theof..... 20.....(SEAL)

Licensing Authority.....Designation.....

Place

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.
2. The articles shall not be conveyed by any route other than that specified in column 7 and bulk shall not be broken nor shall the consignment be stopped, before the articles reach the place of destination.
3. An account of the contents of each package shall be legibly written thereon; and where the articles are conveyed by rail each package shall be marked with the words "Arms" or "Ammunition", as the case may be, so as to be readily recognisable by the railway authorities.

FORM XIX

[***]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

LICENCE FOR EXPORT AND RE-IMPORT/IMPORT, TRANSPORT AND RE-EXPORT OF ARMS AND AMMUNITION

Arms

Ammunition

Name, description and residence of licensee and agent (if any) authorized for the purpose of this consignment

Licensee's place of business, if any

Number of packages

Description

Number

Description

Weight in Kg. or number

Place of dispatch, route and mode of transif

Place of destination

Name, description and residence of consignee

Period for which the licence is valid

1

2

3

4

5

6

7

8

9

10

11

From the 20.....

To the 20.....

The

..... of.....

20.....

Date on which copy is sent to the-

(a) Secretary, Central Administration of the Department Government of the State of Pondicherry

(b) District Magistrate

.....district.

(c) Station Master of the

.....railway station.....

(d) Authority at the port of export/re-import (vide rule 35).

(Signature)

Theof..... 20.....(SEAL)

Licensing Authority.....Designation.....
Place

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.
2. The articles shall not be conveyed by any route other than that specified in column 8 and bulk shall not be broken nor shall the consignment be stopped, before the articles reach the place of destination.
3. An account of the contents of each package shall be legibly written thereon; and where the articles are conveyed by rail, each package shall be marked with the words "Arms" or "Ammunition", as the case may be, so as to be readily recognisable by the railway authorities.
4. The articles shall be delivered only to a person lawfully entitled to receive them.

FORM XX

[**]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1987 (w.e.f. 3-1-1998).]

LICENCE FOR THE TRANSPORT OF ARMS AND AMMUNITION

Arms

Ammunition

Name, description of licensee, and agent (if any) authorized for the purpose of this consignment

Licensee's place of business, if any

Number of packages

Description

Number

Description

Weight in Kg. or number

Place of dispatch, route and mode of transif

Place of destination

Name, description and residence of consignee

Period for which the licence is valid

1

2

3

4

5

6

7

8

9

10

11

From the 20.....

To the 20.....

The

of..... 20.....

Date on which a certificate of "no objection's" is obtained fromCommissionerof Police

..

Government of the Stateof

.....

District Magistrate of the district (vide rule 50)

The

of..... 20.....

Date on which a copy is sent to the District Magistrateofthe.....

Government of the State of

District Magistrate at (vide rule 38)

(Signature)

The

of..... 20.....

Licensing Authority.....

Designation

.....

(SEAL)

Place

.....

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.
2. The articles shall not be conveyed by any route other than that specified in column 8; and bulk shall not be broken nor shall the consignment be stopped, before the articles reach the place of destination:
Provided that where the consignment is ready but could not be despatched in one bulk, for reasons beyond the control of the licensee the articles may be sent in lots provided proper intimation is sent to the licensing authority, who may extend the time-limit in column 11, if necessary.
3. An account of the contents of each package shall be legibly written thereon; and where the articles are conveyed by rail each package shall be marked with the words "Arms" and "Ammunition", as the case may be, so as to be readily recognisable by the railway authorities.
4. The articles shall be delivered only to a person lawfully entitled to receive them.
5. Where a licence granted for industrial purposes have been made valid for a period longer than the normal period of twice the time taken in journey from godown to factory [vide proviso to sub-rule (4) of rule 38], necessary entries shall promptly be made in the stock registers maintained by the dealer for the purpose at both places (viz., godown and factory).

FORM XXI

[***]

[This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.]

LICENCE FOR IMPORT INTO, POSSESSION FOR THE DURATION OF THE JOURNEY IN, TRANSPORT ACROSS AND EXPORT OUT OF INDIA OF ARMS OR AMMUNITION CARRIED BY HIS MAJESTY THE KING OF NEPAL, PERSONNEL ACCOMPANYING HIM, HIS BROTHER, THE PRIME MINISTER OF NEPAL AND NEPAL GOVERNMENT TROOPS OR POLICE FROM ONE PLACE IN NEPAL TO ANOTHER PLACE IN NEPAL THROUGH INDIAN TERRITORY

Designation of licensee agent(s)

Number of retainers

Arms and ammunition that licensee is entitled to import/possess transport/export

Place of entry in India

District(s) through which the arms or ammunition shall pass

Place of departure from India

Period for which the licence is valid

Brief description of the arms

Quantity & description of each kind of ammunition

1

2

3

4

5

6

7

8

From the

..

To the

Theof..... 20.....

Date on which copy is sent to the District Magistrate of

.....district [vide rule 43(2)]

Theof..... 20.....

(SEAL)

(Signature)

Ambassador of India in Nepal

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. It covers only the person named, and the arms or ammunition described therein.

3. The licensee shall not, while in India, sell or transfer any arms or ammunition covered by this licence.

Note. - Any breach of the conditions of this licence is punishable with imprisonment for a term which may extend to six months, or with fine which may extend to Rs. 2,000, or with both [section 30 of the Act].

FORM XXII

[**]

[Fee and entries relating thereto omitted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

TRANSIT LICENCE FOR IMPORT INTO, OR ACQUIRING IN POSSESSION AND TRANSPORT IN, AND EXPORT OUT OF INDIA OF PERSONAL ARMS OR AMMUNITION IN REASONABLE QUANTITIES BY TRAVELLER/TOURIST

Name and description of licensee

Arms and ammunition that licensee is entitled to import or acquire in India/import/possess/transport/export

Place of departure from India (vide rule 44)

Period for which the licence is valid

Brief description of the arms

Quantity & description of each kind of ammunition

1

2

3

4

5

Theof..... 20.....

Date on which copy is sent to-

Officer specially empowered by the State Government/Administrator/Lt. Governor/Chief Commissioner [vide rule 42(2)]

Theof..... 20.....

(SEAL)

(Signature)

Licensing Authority

.....

Designation

.....

Place

.

CONDITIONS

1. This licence is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 1962.

2. It covers only the person named, and the arms or ammunition described therein.

3. This licensee shall not, unless specially empowered in this behalf by the authority granting the licence, carry arms or ammunition to a fair, religious procession or other public assemblage.

4. The licensee shall not carry Government arms or ammunitions.-

Explanation. - For the purposes of this condition-

(a)

"Government arms" means a firearm or other weapon which is the property of Government; and

(b)

"Government ammunition" means ammunition manufactured in any Government factory, or prepared for and supplied to Government other than such ammunition as may be released by Government for civilian use.

5. The licensee shall, on demand by any Magistrate, police officer, produce the weapons covered by this licence.

6. The licensee shall not, while in India, sell or transfer any arms or ammunition covered by this licence without previous approval of the licensing authority of the place of sale or transfer.

7. The licensee shall produce the weapon for inspection of the licensing authority [vide rule 45(3)] at the time of leaving India and return his licence to the passport checking authority or other officer empowered by the District Magistrate in this behalf at the port or other place of departure from India.

Note. - Any breach of the conditions of this licence is punishable with imprisonment for a term which may extend to six months, or with fine which may extend Rs. 2,000, or with both [section 30 of the Act].

[FORM "A"

[Substituted by G.S.R. 52 (E), dated 24-1-1989.]

FORM OF APPLICATION FOR AN ARMS LICENCE

(See rule 51)

Part A

Identity of applicant

1. Name :

2. Father's/husband's name :

3. Place of birth (Nativity) :

4. Date of birth in Christian era both in words and figures :

5. Present address :

** (a) Nearest police station :

6. Permanent address :

** (a) Nearest police station :

7. Occupation and designation of office, held, if any (together with address) :

Signature/Thumb-impression

Note. - **Nearest police station means the police station under whose jurisdiction the place given in the address comes.

Part B

Other particulars of applicant

9. Whether the applicant has been--

(a)

convicted-if so, the offence(s), the sentence and date of sentence;

(b)

ordered to execute a bond wider Chapter VIII of Code of Criminal Procedure, 1973 (2 of 1974) for keeping the peace or for good behaviour-if so, when and for what period;

(c)

prohibited under the Arms Act, 1959, or any other law from having the arms/ammunition.

10. (a) whether the applicant applied for a licence before-if so, when, to whom and with what result;

(b)

whether the applicant's licence was ever suspended or cancelled/revoked-if so, when and by whom and on what account;

(c)

whether any other member of the applicant's family is in possession of an arms licence-if so, particulars thereof.

11. Whether the applicant--

(a)

is a licensee or exemptee-if so, description of the arms, held;

(b)

has a safe place to keep the arms;

(c)

is a bona fide tourist-if so

(i)
name of the country to which he belongs;

(ii)
whether he is prohibited by the laws of his country from having in his possession any arms and ammunition;

(iii)
the probable date of his arrival in India.

Note. - Bona fide tourist is permitted to bring into India, subject to the conditions specified in section 10 and in rule 32, arms and ammunition in reasonable quantities for his use for purpose only of sport and for no other purpose.

Part C

Particulars of Licences

12. Need for licence:

13. The Form in which the licence is required:

14. Description of arms/ammunition:

15. (a) Area with which applicant wishes to carry arms,

(b)
place where arms/ammunition will be kept/manufactured, etc.,

(c)
Place/route of import/export/transport.

16. Other particulars required as in the relevant licence Form:

17. Claims for special consideration:

Note. - Against column 12 the applicant should clearly mention the purpose(s) for which the licence is required-such as-use, acquisition, possession, carrying, manufacture, sale, transfer, repair, convert, proof-test, import, re-import, export, re-export, self-protection, sport, display, destruction of wild animals which do injury to human beings/cattle, protection of crops and cattle, target practice/shooting temporary possession as bona fide traveller visiting India, etc.

Part D

For applicant requiring licence for import/export/transport/re-export and re-import

18. (a) whether the previous sanction of the concerned authority required under rule 50, if any, has been obtained, and if so,

(b)
the evidence in support thereof.

Declaration

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 1962 and other central enactments or the law for the time being in force.

Signature/Thumb-impression of applicant

Place:.....

Date:.....

(Note. - Strike off the entries not relevant)

Warning. - Suppression of any factual information or furnishing of any false or wrong information in the application Form in violation of rule 51-A will render the applicant liable for punishment under section 30 of the Arms Act, 1959.]

[Form XXIII

[See rule 4(2)]

DETAILS OF LICENSES GRANTED BY DISTRICT MAGISTRATE UNDER SECTION 13 OF THE ARMS ACT, 1959
(54 OF 1959)

Name, description and address of the licensee

Category of arms

Description (weight in Kg, make number etc.)

Category of ammunition

Description (weight in kg, make, number etc.)

Purpose for which acquired

Period for which license is valid

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Name (in capital)/Signature of

The Licensing Authority

Designation :

Place :

OR

Signature of the Officer especially empowered

To sign the license under Rule 4

Designation :

Place :

The _____ of 20

(SEAL)

]

[SCHEDULE IV]

[Inserted by G.S.R. 1, dated 19-12-1997 (w.e.f. 3-1-1998).]

(See rule 57)

FEES PAYABLE FOR LICENCES

Sl. No.

Form No.

Licenceefee for initial year of grant (In Rs.)

Renewal fee for each subsequent year (In Rs.)

1

2

3

4

1. I

150

50

2. II

50

10

3. III

(a) Pistols, revolvers and repeating rifle

100

50

(b) Rifles other than those mentioned in (a) and (c)

60

30

(c)

.22 bore rifle (low velocity) firing rimmed cartridges, BL gun and air rifle

40

20

(d) ML gun, air gun, sword, bayonet, dagger and spearlance

10

05

(e) Weapons of Category V other than those mentioned in (d)

-

-

4. IIIA

-

-

5. IIIB

-

-

6. IV

-

-

7. V

-

-

8. VI

(a) Pistol or Revolver

100

50

(b) Rifle other than those mentioned in (c)

60

30

(c)

.22 bore rifle (low velocity) firing rimmed ctdgs. BL gun or rifle

40

20

(d) ML gun or airgun

10

05

9. VII

20 (for each weapon)

-

10. VIII

20 (for each weapon)

-

11. IX

500

200

12. X

(a) to a holder of a licence in Form IX

-

-

(b) to others

13. XI

200

100

14. XII

300

200

15. XIII

300

200

(a) to a holder of a licence in Form IX

-

-

(b) For arms of Cat. V only

50

100

(c) Otherwise

100

100

16. XIV

-

-

17. XV

(a) Firearms and ammunition

100 (for single weapon)

500 in other cases (i.e., consignment of more than one weapon and of ammunition)

(b) Arms of Cat. V (where a licence is required)

50 (for single weapon)

100 in other cases (i.e., consignment of more than one weapon and of ammunition)

(c) For sulphur imported under rule 57(5)

-

18. XVI

(a) Firearms and ammunition

100 (for single weapon)

500 in other cases (i.e., consignment of more than one weapon and of ammunition)

(b) Arms of Cat. V

50 (for single weapon)

100 in other cases (i.e., consignment of more than one weapon and of ammunition)

19. XVII

(a) Firearms and ammunition

100 (for single weapon)

500 in other cases (i.e., consignment of more than one weapon and of ammunition)

(b) Arms of Cat. V

50 (for single weapon)

100 in other cases (i.e., consignment of more than one weapon and of ammunition)

20. XVIII

(a) Firearms and ammunition

100 (for single weapon)

500 in other cases (i.e., consignment of more than one weapon and of ammunition)

(b) Arms of Cat. V

50 (for single weapon)

100 in other cases (i.e., consignment of more than one weapon and of ammunition)

21. XIX

(a) Firearms and ammunition

100 (for single weapon)

500 in other cases (i.e., consignment of more than one weapon and of ammunition)

(b) Arms of Cat. V

50 (for single weapon)

100 in other cases (i.e., consignment of more than one weapon and of ammunition)

(c) For re-export and re-import under rule 35.

50 (for single weapon)

100 in other cases (i.e., consignment of more than one weapon and of ammunition)

22. XX

(a) Firearms and ammunition

100 (for single weapon)

500 in other cases (i.e., consignment of more than one weapon and of ammunition)

(b) Arms of Cat. V

50 (for single weapon)

100 in other cases (i.e., consignment of more than one weapon and of ammunition)

(c) where the arms or ammunition and transported for re-export and re-import under rule 35

50 (for single weapon)

100 in other cases (i.e., consignment of more than one weapon and of ammunition)

23. XXI

-

24. XXII

50 (for each weapon)

[Inserted by Notification No. G.S.R. 453 (E) dated 21.5.2010]

[Inserted by G.S.R. 1324, dated 9-9-1964.]

[Inserted by G.S.R. 1324, dated 9-9-1964.]

[Substituted by G.S.R. 509, dated 26-5-1982.]

[Substituted by G.S.R. 634, dated 3.3.1970.]

[Substituted by Notification No. G.S.R. 452(E) dated 26.5.2010 (w.e.f. 20.7.2000)]

Related AI tags, queries and research notes

Translation